
NEW SERIES

Nos. 47 and 48

PUBLISHED ANNUALLY

BY THE

PENNSYLVANIA PRISON SOCIETY

INSTITUTED MAY 8, 1787

—

THE JOURNAL

OF

PRISON DISCIPLINE

AND

PHILANTHROPY

—

JANUARY, 1909

—

OFFICE: STATE HOUSE ROW
S. W. CORNER FIFTH AND CHESTNUT STREETS
PHILADELPHIA, PA.

NEW SERIES

Nos. 47 and 48

PUBLISHED ANNUALLY

BY THE

PENNSYLVANIA PRISON SOCIETY

INSTITUTED MAY 8, 1787

THE JOURNAL

OF

PRISON DISCIPLINE

AND

PHILANTHROPY

JANUARY, 1909

OFFICE: STATE HOUSE ROW
S. W. CORNER FIFTH AND CHESTNUT STREETS
PHILADELPHIA, PA.

Cover created by transcriber and placed in the public domain.

**The Project Gutenberg eBook of The Journal of Prison
Discipline and Philanthropy (New Series, No. 47 and 48,
January 1909)**

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Journal of Prison Discipline and Philanthropy (New Series,
No. 47 and 48, January 1909)

Author: Pennsylvania Prison Society

Release date: December 1, 2018 [eBook #58386]

Language: English

Other information and formats: www.gutenberg.org/ebooks/58386

Credits: Produced by Larry B. Harrison, Wayne Hammond and the
Online

Distributed Proofreading Team at <http://www.pgdp.net> (This
book was produced from images made available by the
HathiTrust Digital Library.)

*** START OF THE PROJECT GUTENBERG EBOOK THE JOURNAL
OF PRISON DISCIPLINE AND PHILANTHROPY (NEW SERIES, NO.
47 AND 48, JANUARY 1909) ***

NEW SERIES

Nos. 47 and 48

PUBLISHED ANNUALLY

BY THE

PENNSYLVANIA PRISON SOCIETY

INSTITUTED MAY 8, 1787

—

THE JOURNAL

OF

PRISON DISCIPLINE

AND

PHILANTHROPY

—

JANUARY, 1909

—

OFFICE: STATE HOUSE ROW
S. W. CORNER FIFTH AND CHESTNUT STREETS
PHILADELPHIA, PA.

OFFICIAL VISITORS.

No person who is not an official visitor of the prison, or who has not a written permission, according to such rules as the Inspectors may adopt as aforesaid, shall be allowed to visit the same; the official visitors are: the Governor, the Speaker and members of the Senate; the Speaker and members of the House of Representatives; the Secretary of the Commonwealth; the Judges of the Supreme Court; the Attorney-General and his Deputies; the President and Associate Judges of all the courts in the State; the Mayor and Recorders of the cities of Philadelphia, Lancaster, and Pittsburg; Commissioners and Sheriffs of the several Counties; and the “Acting Committee of the Philadelphia Society for Alleviating the Miseries of Public Prisons.” (Note: Now named “The Pennsylvania Prison Society.”) —*Section 7, Act of April 23, 1829.*

The above was supplemented by the following Act, approved March 20, 1903:

AN ACT.

To make active or visiting committees of societies incorporated for the purpose of visiting and instructing prisoners official visitors of penal and reformatory institutions.

SECTION 1. Be it enacted, etc., That the active or visiting committee of any society heretofore incorporated and now existing in the Commonwealth for the purpose of visiting and instructing prisoners, or persons confined in any penal or reformatory institution, and alleviating their miseries, shall be and are hereby made official visitors of any jail, penitentiary, or other penal or reformatory institution in this Commonwealth, maintained at the public expense, with the same powers, privileges, and functions as are vested in the official visitors of prisons and penitentiaries, as now prescribed by law: Provided, That no active or visiting committee of any such society shall be entitled to visit such jails or penal institutions, under this act, unless notice

of the names of the members of such committee, and the terms of their appointment, is given by such society, in writing, under its corporate seal, to the warden, superintendent or other officer in charge of such jail, or other officer in charge of any such jail or other penal institution.

Approved—The 20th day of March, A. D. 1903.

SAML. W. PENNYPACKER.

The foregoing is a true and correct copy of the Act of the General Assembly No. 48.

FRANK M. FULLER,
Secretary of the Commonwealth.



RIGHT REV. WILLIAM WHITE, D. D., LL. D.

First President of The Pennsylvania Prison Society, from 1787 to 1836.

NEW SERIES

Nos. 47 AND 48.

THE JOURNAL
OF
PRISON DISCIPLINE
AND
PHILANTHROPY

PUBLISHED ANNUALLY

UNDER THE DIRECTION OF "THE PENNSYLVANIA PRISON SOCIETY"
INSTITUTED MAY 8TH, 1787

JANUARY, 1909

OFFICE: STATE HOUSE ROW
S. W. CORNER FIFTH AND CHESTNUT STREETS
PHILADELPHIA, PA.

THE PENNSYLVANIA PRISON SOCIETY

(FORMERLY CALLED THE PHILADELPHIA SOCIETY FOR ALLEVIATING THE MISERIES
OF PUBLIC PRISONS.)

Place of Meeting, S. W. Cor. Fifth and Chestnut Sts., Philadelphia.

The 122d Annual Meeting of "THE PENNSYLVANIA PRISON SOCIETY" was held First month (January) 28th, 1909.

The meeting was called to order by the President, JOSHUA L. BAILY, at whose request the Vice-President, the REV. H. L. DUHRING, D. D., took the chair.

The Secretary, JOHN J. LYTLE, being absent on account of illness, ALBERT H. VOTAW was appointed Secretary *pro tem*.

The Minutes of the 121st Annual Meeting were read and approved.

The Treasurer presented a report which was satisfactory. (See page 15.)

The officers and the members of the Acting Committee for 1909 were elected. (See pages 3 and 4.)

GEORGE S. WETHERELL, on behalf of the Acting Committee, presented a draft of proposed amendments to the Constitution of the Society. This report was referred to the Acting Committee for further consideration.

The Nominating Committee presented the following resolution:

"In recognition of the long, faithful and unselfish services of JOHN J. LYTLE as Secretary of 'THE PENNSYLVANIA PRISON SOCIETY,' the Nominating Committee recommend that he be elected Honorary Secretary...."

The resolution was adopted unanimously by a rising vote.

ALBERT H. VOTAW, *Secretary*.

SPECIAL NOTICES.

All correspondence with reference to the work of the Society, or to the JOURNAL OF PRISON DISCIPLINE AND PHILANTHROPY, should be addressed to THE PENNSYLVANIA PRISON SOCIETY, 500 Chestnut St., Philadelphia, Pa.

The National Prison Congress of the United States for the past ten years has designated the fourth Sunday in October, annually, as Prison Sunday. To aid the movement for reformation, some speakers may be supplied from this Society. Apply to chairman of the Committee on Prison Sunday.

FREDERICK J. POOLEY is the General Agent of the Society at the Eastern Penitentiary and at the Philadelphia County Prison. His address is 500 Chestnut St., Philadelphia.

Contributions for the work of the Society may be sent to JOHN WAY, Treasurer, 409 Chestnut St., Philadelphia.

OFFICERS OF THE SOCIETY FOR 1909.

PRESIDENT

JOSHUA L. BAILY, 30 S. Fifteenth Street, Philadelphia.

VICE-PRESIDENTS

REV. HERMAN L. DUHRING, D. D., 225 S. Third Street, Philadelphia.

REV. F. H. SENFT, 360 N. Twentieth Street, Philadelphia.

TREASURER

JOHN WAY, 409 Chestnut Street, Philadelphia.

SECRETARIES

ALBERT H. VOTAW, 300 Chestnut Street, Philadelphia.

FRED. J. POOLEY, 300 Chestnut Street, Philadelphia.

COUNSELORS

HON. WM. N. ASHMAN, Forty-fourth and Spruce Streets, Philadelphia.

HENRY S. CATTELL, 1218 Chestnut Street, Philadelphia.

THE ACTING COMMITTEE

John J. Lytle

John H. Dillingham

P. H. Spellissy

Dr. Emily J. Ingram

William Scattergood

Mrs. P. W. Lawrence

Mary S. Whelen

Moorestown, N. J.

140 N. Sixteenth Street, Philadelphia.

120 S. Eighteenth Street, Philadelphia.

Telford, Pa.

West Chester, Pa.

1338 N. Thirteenth Street, Philadelphia.

1520 Walnut Street, Philadelphia.

William Koelle	1209 Girard Avenue, Philadelphia.
Rev. R. Heber Barnes	600 N. Thirty-second Street, Philadelphia.
Dr. William C. Stokes	2003 Arch Street, Philadelphia.
William T. W. Jester	412 Spruce Street, Philadelphia.
Deborah C. Leeds	West Chester, Pa.
Mrs. Horace Fassett	220 S. Twentieth Street, Philadelphia.
George R. Meloney	4809 Springfield Avenue, Philadelphia.
Joseph C. Noblit	1521 N. Broad Street, Philadelphia.
Miss C. V. Hodges	2102 Master Street, Philadelphia.
Rebecca P. Latimer	4131 Westminster Avenue, Philadelphia.
Rev. Floyd W. Tomkins, D. D.	1904 Walnut Street, Philadelphia.
Rev. J. F. Ohl	826 S. St. Bernard Street, Philadelphia.
Harry Kennedy	Eaglesville, Pa.
Layyah Barakat	236 S. Forty-fourth Street, Philadelphia.
William E. Tatum	843 N. Forty-first Street, Philadelphia.
Mary S. Wetherell	2036 Race Street, Philadelphia.
George S. Wetherell	2036 Race Street. Philadelphia.
Henry C. Cassel	2316 Germantown Avenue, Philadelphia.
Albert Oetinger	Warminster, Pa.
Rev. Philip Lamerdin	Olney, Philadelphia.
David Sulzberger	316 Race Street, Philadelphia.
Mrs. E. W. Gormly	Pittsburg, Pa.
A. Jackson Wright	2141 N. Camac Street, Philadelphia.
Frank H. Longshore	2359 E. Cumberland Street, Philadelphia.
Charles H. LeFevre	827 Race Street. Philadelphia.
Mrs. E. M. Stillwell	1248 S. Broad Street, Philadelphia.
Solomon G. Engle	648 N. Thirty-ninth Street, Philadelphia.
Charles P. Hastings	2304 N. Twenty-second Street, Philadelphia.
Isaac P. Miller	409 Chestnut Street, Philadelphia.
Elias H. White	West End Trust Building, Philadelphia.
John Smallzell	Haddonfield, N. J.
John D. Hampton	Twenty-ninth and Ridge Avenue, Philadelphia.
John A Duncan	257 S. Fifty-first Street, Philadelphia.
Jonas G. Clemmer	2209 N. Franklin Street, Philadelphia.

Charles McDole
Samuel B. Garrigues

812 Race Street, Philadelphia.
1719 N. Twenty-eighth Street,
Philadelphia.

Harrison Walton
Rev. C. Theodore Benze
Rev. A. J. D. Haupt, D. D.
Arthur Buckler

1706 Columbia Avenue, Philadelphia.
Erie, Pa.
Pittsburg, Pa.

Mrs. Mary S. Grigg
C. Wilfred Conard
Henry W. Comfort

2209 Tulip Avenue, Philadelphia.
1235 N. Thirteenth Street, Philadelphia.
Lansdowne, Pa.
Fallsington, Pa.

COMMITTEES.

Visiting Committee for the Eastern State Penitentiary:

John J. Lytle, Rev.	Philip Lamerdin,	Charles P. Hastings,
P. H. Spellissy,	Harry Kennedy,	Solomon G. Engle,
John H. Dillingham,	Layyah Barakat,	Isaac P. Miller,
William Koelle,	Rev. J. F. Ohl,	Elias H. White,
Rev. R. Heber Barnes,	William E. Tatum,	John Smallzell,
Dr. William C. Stokes,	Mary S. Wetherell,	John D. Hampton,
William T. W. Jester,	George S. Wetherell,	Jonas G. Clemmer,
Deborah C. Leeds,	Henry C. Cassel,	Charles McDole,
Mrs. Horace Fassett,	Albert Oetinger,	Samuel B. Garrigues,
George R. Meloney,	David Sulzberger,	Harrison Walton,
Joseph C. Noblit,	Frank H. Longshore,	Arthur Buckler,
Rebecca P. Latimer,	A. J. Wright,	Mrs. Mary S. Grigg,
Rev. Floyd W. Tomkins,	Charles H. LeFevre,	Albert H. Votaw.

Visiting Committee for the Philadelphia County Prison:

Fred. J. Pooley,	William T. W. Jester,	Mary S. Wetherell,
Dr. Emily J. Ingram,	Deborah C. Leeds,	David Sulzberger,
Mrs. P. W. Lawrence,	Mrs. Horace Fassett,	Mrs. E. M. Stillwell,
Mary S. Whelen,	Miss C. V. Hodges,	John A. Duncan.

For the Holmesburg Prison:

Fred. J. Pooley,	David Sulzberger.
------------------	-------------------

For the Chester County Prison:

William Scattergood,	Deborah C. Leeds.
----------------------	-------------------

For the Delaware County Prison:

Deborah C. Leeds,	C. Wilfred Conard.
-------------------	--------------------

For the Western Penitentiary and Allegheny County Prison:

Rev. A. J. D. Haupt, D.
D.,

Mrs. E. W.
Gormly.

For the Bucks County Prison:

Henry W. Comfort.

For the Erie County Prison:

Rev. C. Theodore Benze.

For the Counties of the State at Large:

Fred. J. Pooley, Deborah C. Leeds, Mrs. E. W. Gormly.
Layyah Barakat, Albert H. Votaw,

For the House of Correction:

Fred. J. Pooley, David Sulzberger, Layyah Barakat,
Deborah C. Leeds.

Auditors of Acting Committee:

Charles P. Hastings, Dr. Wm. C. Stokes, John Smallzell.

Editorial Committee:

Rev. J. F. Ohl, Rev. R. Heber Barnes, Dr. Wm. C. Stokes.
John Way, Albert H. Votaw,

On Membership in the Acting Committee:

Dr. Wm. C. Stokes, Albert Oetinger, Charles P. Hastings.
George S. Wetherell, Elias H. White,

On Finance:

George S. Wetherell, David Sulzberger, A. Jackson Wright.

Joseph C. Noblit, C. Wilfred Conard,

On Discharged Prisoners:

Joseph C. Noblit, George S. Wetherell, Dr. Wm. C. Stokes.
Mrs. Horace Fassett, Mrs. P. W. Lawrence,

Auditors of the Society:

A. Jackson Wright, Elias H. White.

On Police Matrons in Station Houses:

Mrs. P. W. Lawrence, Dr. Emily J. Ingram, Mary S. Wetherell.

On Prison Sunday:

Rev. H. L. Duhring, D. D., Rev. R. Heber Barnes, Rev. J. F. Ohl.
Rev. F. H. Senft,

On Legislation:

Rev. J. F. Ohl, Joseph C. Noblit, Rev. R. Heber Barnes.
David Sulzberger, Elias H. White,

JOURNAL OF PRISON DISCIPLINE AND PHILANTHROPY

ONE HUNDRED AND TWENTY-SECOND YEAR.
1787. OF 1909.

THE PENNSYLVANIA PRISON SOCIETY

ANNUAL REPORT OF JOHN J. LYTLE, GENERAL
SECRETARY.

In submitting this, my Eighteenth Report, covering the last two years, I realize that I have much cause for gratitude. For a large part of this time, I have been blessed with health and strength to continue my labors among the prisoners of the Eastern Penitentiary.

I have been an Official Visitor at this institution for fifty-six years, and for more than a score of years I have given my entire service to this work for which I have felt that I had a special call.

While providing prisoners at the time of their discharge with a respectable outfit, it has also been my earnest desire to point them to the Lamb of God which taketh away the sin of the world. I have also continued my visits to the cells of the prisoners, and I have felt that a blessing has attended my efforts. While I can never know the result of these labors, I have worked in faith endeavoring to minister to both their temporal and spiritual needs. Many have confessed to me that their imprisonment had been to them a blessing. Arrested in their career of crime, they had resolved to lead better lives in the future. I have not doubted their sincerity, and have encouraged such to seek Divine help. It is right to protect the community, and the law-breaker must suffer the penalty for his crime, but while he is incarcerated it is our duty to avail ourselves of the opportunity to instruct him and to plead with him to follow better ideals. Indeed, I have felt it a great privilege to sit beside a prisoner in his cell and tell him of the "old, old story of Jesus and his love."

From careful inquiries, I am satisfied that the most of the prisoners can trace their downfall to indulgence in drink and the social evil.

THE EASTERN PENITENTIARY.

At the Eastern Penitentiary several thousand visits are annually made by the members of the Acting Committee of the Pennsylvania Prison Society. This Committee is composed of clergymen and laymen, men and women. To each block one or more visitors are assigned, and it is believed that the interviews held by these with the prisoners, either in their cells or at the cell doors, are productive of much good. The lady visitors of the Committee are all assigned to the women's block. Here a Bible class is held every Sabbath afternoon; and the matron is also earnestly and constantly interested in the spiritual welfare of those in her care. On every Sabbath morning, at 9 o'clock, service is held in each of the corridors under the direction of the moral instructor, the Rev. Joseph Welsh. The speakers are supplied by the Local Preachers' Association of the Methodist Episcopal Church, the Protestant Episcopal City Mission and the Lutheran City Mission.

The total amount expended by the Society during the last two years for the use of prisoners at the time of their discharge was \$5,152.54, and for tools \$93.30.

The following are the statistics of population at the Penitentiary during 1908.

	White		Colored		Total
	Males	Females	Males	Females	
Number remaining from 1907	925	12	280	8	1,225
Committed during 1908	524	4	137	8	673
Total population	1,449	16	417	16	1,898
Discharged during 1908	318	5	92	3	418
Remaining December 31, 1908	1,131	11	325	13	1,480

THE DISCHARGES WERE AS FOLLOWS:

By Commutation	357
” Order of Court	8
” Time expired	20
” Pardon	9
” Order of Huntingdon Reformatory	9
” Death	15
Total	418
Average daily population for 1908	1,371
Largest number in confinement during the year	1,486
Smallest number in confinement during the year	1,225

PHILADELPHIA COUNTY PRISON

There are two County Prisons in Philadelphia, under the same Board of Inspectors, one at Tenth and Reed Streets, known as “Moyamensing,” and the other at Holmesburg. The former is used chiefly for prisoners awaiting trial and for those serving short terms for minor offenses; the latter, for those who are sentenced to longer terms.

Cleanliness and good order prevail in both institutions, but both are overcrowded. “Separate and solitary confinement” may be a part of the sentence, but the insufficiency of the accommodations renders it impossible to carry out this provision of the law. Since there is abundant room for additional buildings at Holmesburg, it is unfortunate that the county authorities do not erect as many buildings as may be needed.

Frederick J. Pooley, the Society’s Agent at the County Prisons, also considers it very unfortunate that those awaiting trial, some of whom may be found innocent, have their minds contaminated by listening to the stories of the older criminals. When released from prison they are the more easily induced to enter upon a criminal career.

Mr. Pooley visits Moyamensing three times a week and Holmesburg twice a week. He gives special attention to those who have been committed by magistrates for short terms. These he interviews as soon as they are committed, and when he feels assured that anyone is being wrongfully or unduly punished, he takes measures to have him released. He regards the untried department as an especially fruitful field of work.

OTHER PRISONS

Among other prisons visited by members of the Acting Committee are the following: Chester County, by William Scattergood; Delaware County, by Deborah C. Leeds; the Western Penitentiary, by the Rev. A. J. D. Haupt, D. D., and Mrs. E. W. Gormly; Erie and Warren Counties, by the Rev. C. Theodore Benze.

THE DOOR OF BLESSING

The door of Blessing, at 4220 Chester Avenue, was founded and is conducted by Mrs. Horace Fassett. Its object is to provide a home for women discharged from prison until they shall return to their relatives or be put in the way of earning a livelihood. During 1908 forty women and one infant were admitted. Thirty of these women were from the County Prison, two from the Eastern Penitentiary, one from the House of Correction and three were sent by magistrates. Of the whole number five were returned to their homes in other states, seven to their homes in Philadelphia, twenty-two left to take positions and four to look for work. Only six are known to have resumed their former evil life. The Door of Blessing is indeed what its name implies, as many of the women who have been its inmates are now leading orderly lives.

THE HOME OF INDUSTRY

The Home of Industry, Seventy-third Street and Paschall Avenue, Mr. Frank H. Starr, Superintendent, is doing for men what the Door of Blessing is designed to do for women. It provides food and shelter, gives employment at broom-making, for which regular wages are paid, and seeks to bring all

who seek it under the saving power of the Gospel. Its success in reclaiming men has been very pronounced.

From the minutes of the Society:

ISAAC SLACK.

Born 1832.

Died 1907.

The subject of this sketch was born in Cumberland County, England. About the time of the Civil War he came to America and located in Philadelphia.

He joined The Pennsylvania Prison Society about the year 1886, and subsequently became one of the most interested and active members of the Acting Committee. Though without educational advantages in his early life, and therefore self-taught and self-made, he had a remarkably clear insight into many of the social problems of the day, and knew how to give his convictions and conclusions forceful expression when occasion demanded.

His largely attended funeral brought together many friends unknown to his immediate family, to whom he had been a confidential adviser, and whom he had befriended in many ways.

The Society, the prisoners, and others have therefore suffered a genuine loss in his death, and it is with sincere sorrow that we record his demise.

With the earnest desire that the work of The Pennsylvania Prison Society may continue to grow and prosper, I submit this report.

JOHN J. LYTLE,
Secretary.

SUMMARY OF THE WORK OF THE ACTING COMMITTEE.

With the exception of two months in the summer, meetings of the Acting Committee have been regularly held every month since the last number of THE JOURNAL was issued.

An important part of the work of the Society consists in the personal visitation of prisoners for the purpose of fostering in them higher ideals and bringing about their spiritual improvement. As will be seen in the General Secretary's report, this work has continued to receive faithful attention.

A committee is at work revising the Constitution and By-Laws of the Society, and it is expected that their report will be made and adopted before the beginning of next year.

We desire to extend our sincere thanks to the generous friends of our cause, without whose contributions we could not carry on our work. During the last year it has been more difficult than usual to secure financial aid, doubtless in consequence of the recent depression in business. We hope that all our friends whose means will admit will continue their practical assistance.

At the meeting of the committee held June 18, 1908, the venerable Secretary, John J. Lytle, submitted his resignation, with the understanding that he would continue his duties as the Society's Agent at the Eastern Penitentiary. The following resolution relative thereto was adopted at an adjourned stated meeting of the Acting Committee held June 29, 1908:

WHEREAS, our friend, John J. Lytle, having reached the eighty-fifth year of his age, asks to be released as Secretary of the Acting Committee, also as General Secretary,

Therefore be it resolved, that the Acting Committee, in acceding to his request, place on record its appreciation of the faithful performance of

his duties in both these positions throughout the many years he has served the Committee. First elected as Secretary in 1852, afterward as General Secretary in 1886, John J. Lytle has served the Society officially for more than fifty-six years. During this long period he has constantly kept a single eye to the prisoners' welfare and through storm or heat has stood ready to sacrifice himself on their behalf. We are still to have the benefit of his long experience as Secretary of the Society and as Prison Agent. May the freedom now gained from arduous secretarial duties so relieve him that he may, with the more vigor, prosecute the work at the Eastern State Penitentiary on behalf of the discharged prisoners, the phase of our work which he feels most deeply laid on his heart.

Albert H. Votaw was elected as Secretary of the Acting Committee to serve until the time of the next annual meeting.

The newly elected Secretary was subsequently authorized to make a systematic visitation of the County Prisons of Eastern Pennsylvania. His report of these visits will be found below.

On behalf of the Acting Committee.

ALBERT H. VOTAW,
Secretary.

REPORT OF THE SECRETARY ON THE CONDITION OF PRISONS IN EASTERN PENNSYLVANIA.

PHILADELPHIA, PA., 12th mo. 1, 1908.

To the Acting Committee, Pennsylvania Prison Society, Philadelphia,
Pa.

DEAR FRIENDS:

In accordance with a resolution of the Acting Committee, adopted at a special meeting held 6th mo. 29, 1908, authorizing the Secretary to visit some prisons in the eastern part of Pennsylvania, I now present the following report:

Since that time I have visited the prisons in thirty-eight counties, including the State Reformatory at Huntingdon, and I am gratified to report that I have been received everywhere with courtesy, and have been enabled to maintain cordial relations with all prison officials whom I have met. Interviews at some length have been held with sheriffs, wardens, under-keepers, inspectors, and the fullest freedom has been granted to inspect the prisons and to speak with the prisoners. As a rule these officials appear to be discharging their duties as well as the equipment of the prisons allows and as faithfully as the conditions admit. Some of the caretakers seem to have a genuine interest for the best welfare of those over whom they have been placed.

I am under the impression that there has been improvement in recent years in the direction of securing a greater degree of cleanliness and better sanitation, and while much of this improvement is due to the various county officials, it must not be forgotten that along these lines the State Board of Charities has rendered important service.

In twenty-four of the prisons visited the prisoners have little or no labor to perform, although the sentence of the presiding judge may have been "to separate and solitary confinement at hard labor." In no prison is the work arduous. The majority of prisoners welcome opportunities to work. Such occupation is refreshing, as it aids them in whiling away the tedium of their hours of restraint. I heard of no complaints arising from the necessity of laboring, but I did hear complaint arising from the scarcity of employment. In several places both officials and prisoners claim that they are hampered by the State regulations on the subject of prison labor.

"Separate and solitary confinement" is a portion of the sentence which is honored more in the breach than in the observance. It is almost impossible, considering the limited facilities of most of the prisons, to carry out this enactment. In some of the smaller prisons the prisoners are together during most of the day with entire freedom to engage in games, conversation and such exercise as their quarters will permit. At a few of the smaller jails the full freedom of the yard is allowed at all times of the day. It is a source of deep regret that in some prisons the juvenile criminals are confined in the same part of the prison with the older lawbreakers. Usually the boys who have been convicted are very soon sent to the State Reformatory at Huntingdon, but while awaiting trial, or while serving short sentences, they are held in county prisons where there are no arrangements for the segregation of the male prisoners. The women prisoners are usually entirely segregated, but in a few prisons they are confined in cells opening into the same corridors which the men use.

A complete prison ought to have several distinct departments: one for men, one for women, one for boys, one for vagrants and common drunkards, and probably a department for those who are for the first time held for trial. Few of the prisons of the State are so constructed as to admit of such segregation. It seems pitiful that hardened criminals should have such opportunity to corrupt the minds of the young or of those who have committed their first offense under peculiar circumstances of temptation. Those prisons which are constructed with the cells back to back, with door opening into a corridor toward the outside wall of the building, admit more readily of the separation of the various classes of criminals. This plan affords better facilities for light and cheerfulness, and commands some

view of the courtyard. It does not give the individual prisoner the opportunity to get air directly from the outside. When such prisons are built, with an additional narrow corridor between the cells at the rear, this objection is in part obviated. At York a prison has recently been built on this general plan. Being three stories in height, it contains several separate subdivisions. The addition to the prison at Allentown, now in process of construction, will have accommodations for about one hundred prisoners, and the commissioners have adopted some of the distinctive features of the York prison.

Your Secretary made some inquiries as to the daily rations, and discovered quite a variety of bills of fare. In more than one half of these prisons there is a *per diem* allowance for the maintenance of the prisoners. This allowance varies in the prisons visited from fourteen cents to fifty cents. In the smaller prisons this allowance should of necessity be proportionately larger than in the prisons of the more populous counties; but there is a constant tendency, where this allowance is made, to take profit on the transaction, and it appears to be the understanding in some counties that the sheriff is to receive some of his compensation from this source. In one large prison, where there are about one hundred and thirty occupants, the daily ration consists of bread and coffee, the bread being served three times and the coffee twice. Soup is given three times during the week. The allowance for provisions at this prison is thirty cents a day. Those prisoners who have means are allowed to purchase additional supplies from tradesmen, and they can make arrangements to have meat, oysters, etc., especially cooked and served, if they will meet the additional expense. The privilege of purchasing little comforts and additional provisions is almost universal. It is a surprising fact that in one or two prisons it is possible for prisoners to procure, either by purchase or from their friends, a supply of intoxicating drinks. Generally the supply of food is ample and the quality fair. In two or three jails the food is sent from the sheriff's table. On the whole I am inclined to the belief that the best diet conditions prevail where the authorities let contracts for supplies every three or six months. In prisons where the number of prisoners is fifty or more the daily cost of maintaining a prisoner is from ten cents to twelve cents. I noted in one small county, where a rather profuse bill of fare is served, that the cost was about thirty cents a day.

Vagrants, drunkards and railroad trespassers are often treated with considerable rigor. They may have bread and water for diet and a plank for a bed. In one prison a third offense of this kind is punished with confinement in a small, dark, unfurnished cell for thirty days on diet of bread and water. But in many of the smaller jails these distinctions of punishment are not observed.

It is quite possible that men of just that laudable combination of talent which may fit them for both restraining and reforming the erring are rarely to be found, but surely more attention should be given to the selection of men who have adaptation for such an important work. A faculty for both ruling and governing is an important qualification, but in no field of labor is there more need of a sympathetic spirit, of power to implant new motives and to inspire with desires to lead a better life. These positions should not be regarded merely as a reward for political services. I am glad to report that some of the men in charge appear to realize their duties and responsibilities. Let me call attention to one warden, who, entirely unarmed, calls a company, largely belonging to the famous "Black Hand," about him in the open yard and asks them to relate stories of their homes once under Italian skies. The same official spoke with feeling of the religious services on the Sabbath and of the conversions and requests for prayer. It is possible that those prison officials who report that all religious services accomplish not the slightest good are themselves not very susceptible to impressions of a religious nature. On the other hand, if these religious services are performed perfunctorily, with lack of evidence of Christian fellowship, the convicts receive little or no benefit.

In most of the counties visited the prisons are under the direct care of the sheriff, who holds his office for only one term of three years. Before he has scarcely served an apprenticeship in prison management his successor assumes the duties and begins a new apprenticeship; hence many of the county jails, from one decade to another, are under the care of apprentices. Other things being equal, I have the impression that the best results in prison administration are found in those prisons which are under the care of a warden, who may hold his office year after year so long as he gives satisfaction. This office calls for efficiency, which is obtained by training and experience, supplemented by good executive ability, and should not be

granted merely as a reward for political services. Since the care of the prisoners is, in most of the counties, a minor part of the duties of the sheriff, I think it might properly be considered whether the county jails should be placed in the charge of some official appointed by the commissioners. Such a man would be chosen with direct reference to fitness for such work.

The subject of commutation of sentences has received special attention. There is much ignorance in some of the smaller counties about the application of commutation, and prisoners often serve the entire term for which they have been sentenced, although by statute they have earned by good behavior a diminution of their sentence. The statute provides that "every convict confined in any State prison, penitentiary, workhouse or county jail in this State on a conviction of felony or misdemeanor, whether male or female, where the term or terms equals or exceeds one year, exclusive of any term which may be imposed by the court or by statute as an alternative to the payment of a fine, or a term of life imprisonment, may, if the Governor shall so direct, and with the approval of the Board of Inspectors, or Managers, earn for himself or herself a diminution of his sentence or sentences." Now while this statute explicitly mentions those sentenced to a term in county jail as coming under the provisions of this statute, yet in about one fourth of the counties visited there is little attempt to secure for the prisoners the benefit of this statute. As the sheriffs are in office only three years and have manifold duties, they do not become familiar with the provisions of all the statutes relative to prisons and prisoners. It is provided by law that all prisoners sentenced to a term of one year or more, excepting those sentenced for life, should be promptly informed of this provision by which, by good behavior, they can secure a diminution of their sentences. This is neglected in several counties. It is true that those sentenced for the longer terms are taken to the State Penitentiary, yet there are many in the county prisons serving sentences for from one to ten years. In one county the services of an attorney may be secured to aid in getting the commutation, but those who lack means to employ an attorney serve out their time. This is unjust to the prisoner who has behaved satisfactorily, and besides imposes on the county a charge from which it might readily be spared. Copies of the law have been given to the officials in charge of the prisons, the conditions have been explained and blanks indicating the information which is to be forwarded to the Governor of the

State for his action in the premises have been supplied; and your Secretary has reason to believe that a large number of prisoners will in the future receive the commutation which they have earned.

As will be seen from our reports, this Society is engaged in very important service for the prisoners in the Philadelphia County Prison and in the Eastern Penitentiary, both while in prison and after they have been discharged, which work we have no intention to relinquish; but in whatever way this Society enlarges its present field of labor throughout the State, its work would in greater degree correspond to its corporate title, THE PENNSYLVANIA PRISON SOCIETY. In conclusion I desire to call attention to the hope expressed by the retiring Secretary, John J. Lytle, in the report made in 1907, that the "Pennsylvania Prison Society may constantly widen its scope of operations and grow in efficiency and usefulness as it grows in years."

Very respectfully,

ALBERT H. VOTAW,
Secretary.

JOHN WAY, *Treasurer,*

IN ACCOUNT WITH

THE PENNSYLVANIA PRISON SOCIETY

RECEIPTS.

1908.

January 21. To Balance on hand	\$841 26
" Members' Dues and Contributions	278 00
" Net Income from Investments	1,748 02
" Income from I. V. Williamson Legacy	645 00
" Interest on balances to November 30, 1908	58 46
	\$3,570 74

PAYMENTS

By Salaries	\$2,337 48
-------------	------------

” Printing and Postage	130 85
” Janitor Service	97 00
” Advertising in P. E. City Mission Directory	5 00
” Expense, Committee on Police Matrons	3 00
” Expense, Delegates to National Prison Congress	92 83
” Traveling Expenses of Secretaries	114 83
” Office Expenses, Incidentals	23 10
” Engrossing and Framing Minute to J. J. Lytle	8 20
” Amount to Cover Overdraft in Principal Account	40 00
” Accrued Interest on Bonds Bought	44 69
” Balance on hand December 31, 1908	673 76
	<u>\$3,570 74</u>

SPECIAL FUND FOR RELIEF OF DISCHARGED PRISONERS

RECEIPTS

To Balance on hand January 21, 1908	\$608 60
” Contributions	2,455 60
” Income from Investments (net)	135 24
	<u>\$3,199 44</u>

PAYMENTS

By Discharged Prisoners from Eastern Penitentiary	\$1,821 92
” Philadelphia County Prison	885 00
” Balance on hand	492 52
	<u>\$3,199 44</u>

BARTON FUND

FOR TOOLS FOR DISCHARGED PRISONERS

RECEIPTS

To Balance on hand January 21, 1908	\$153 13
” Income from Investments	30 87

\$184 00

Payments

By Amount for tools for discharged prisoners	\$45 26
” Balance on hand December 31, 1908	<u>138 74</u>
	\$184 00

HOME OF INDUSTRY FUND

RECEIPTS

To Income from Harriet S. Benson Legacy	\$392 00
” Income from Caroline S. Williams Legacy	<u>222 41</u>
	\$614 41

PAYMENTS

By \$500 Springfield Water Co. Consol. 5% Bond due 1926 at 101 $\frac{3}{8}$ and interest	\$506 88
„ Accrued Interest on above Bond, one month and twenty-nine days	4 10
” Balance on hand December 31, 1908	<u>103 43</u>
	\$614 41

SUMMARY OF BALANCES

On General Fund	\$673 76
” Special Fund for Discharged Prisoners	492 52
” Barton Fund	138 74
” Home of Industry Fund	<u>103 43</u>
	\$1,408 45

We the undersigned, members of the Auditing Committee, have examined the foregoing account of John Way, Treasurer, have compared the payments with the orders and vouchers, and believe the same to be correct, there being a balance to the credit of our deposit account, under date of December 31, 1908, of \$1,408 45.

We have also examined the securities in the possession of our agents, The Provident Life and Trust Company of Philadelphia, and have found them to agree with an accompanying schedule.

ELIAS H. WHITE,
A. JACKSON WRIGHT,
Auditing Committee.

LIFE MEMBERS OF THE PENNSYLVANIA PRISON SOCIETY.

* Ashmead, Henry B.,	Harrison, Alfred C.,	* Potter, Thomas,
* Baily, Joel J.,	Harrison, Chas. C.,	* Powers, Thomas H.,
* Bartol, B. H.,	* Hockley, Thomas,	* Price, Thomas W.,
* Benson, E. N.,	Ingram, Wm. S.,	* Reynolds, Mrs.,
Bergdoll, Louis,	Ingram, Emily J.,	Rhoads, Joseph R.,
* Betts, Richard K.,	* Jeanes, Joshua T.,	* Roach, Joseph H.,
* Bonsall, E. H.,	Jenks, John S.,	* Saul, Rev. James,
Brooke, F. M.,	* Jones, Mary T.,	* Santee, Charles,
* Brown, Alexander,	Jordan, John, Jr.,	* Seybert, Henry,
Brush, C. H.,	Justice, W. W.,	* Sharpless, Townsend,
Carter, John E.,	* Kinke, J.,	* Steedman, Rosa,
Cattell, H. S.,	* Knight, Reeve L.,	Sulzberger, D.,
* Childs, George W.,	* Laing, Anna T.,	* Thomas, Geo. C.,
Coles, Miss Mary,	* Laing, Henry M.,	* Tracey, Charles A.,
Collins, Alfred M.,	Lea, M. Carey,	* Townsend, Henry T.,
Coxe, Eckley B., Jr.,	Leaming, J. Fisher,	* Waln, L. Morris,
Downing, Richard H.,	Lewis, Mrs. Sarah,	Walk, Jas. W., M. D.
Dreer, Ferd. J.,	* Lewis, Howard W.,	Warren, E. B.,
* Dreer, Edw. G.,	Lewis, F. Mortimer,	Watson, Jas. V.,
* Douredore, B. L.,	Longstreth, W. W.,	Way, John,
Duhring, H. L., Rev.	Love, Alfred H.,	Weightman, William,
Duncan, John A.,	* Maginnis, Edw. I.,	* Weston, Harry,
* Elkinton, Joseph S.,	* Manderson, James,	Whelen, Mary S.,
Elwyn, Alfred,	Milne, C. J.,	* Williams, Henry J.,

Elwyn, Mrs. Helen M., * McAlister, Jas. W., * Williamson, I. V.,
 * Fotterall, Stephen G., * Osborne, Hon. F. W., * Willits, Jeremiah,
 Frazier, W. W., Patterson, Robert, * Willits, Jeremiah, Jr.,
 Goodwin, M. H., * Pennock, George, Wood, Walter,
 * Hall, George W., * Perot, Joseph,
 *Deceased.

ANNUAL MEMBERS.

Ashman, Hon. William N.,	Clunn, Herschel,	Grigg, Mary S.,
Appleton, Rev. Samuel E.,	Cadbury, Benj.,	Harris, Rev. J. Andrews,
Ash, H. St. Clair, M. D.,	Conard, C. Wilfred,	Hart, William H., Jr.,
Allen, H. Percival,	Comfort, Henry W.,	Hagert, Edwin,
Baily, Joshua L.,	Dillingham, John H.,	Hackenburg, William B.,
Brown, T. Wistar,	Davis, Edward T.,	Harding, Mrs. W. W.,
Biddle, Samuel,	Detwiler, Isaac L.,	Hallowell, William S.,
Barnes, Rev. R. Heber,	Detwiler, Walter L.,	Heller, Clyde A.,
Burnham, William,	D'Invillier, Charles E.,	Hodges, Miss C. V.,
Baird, John E.,	Dallett, Alfred M.,	Hayes, J. H. M.,
Baker, Rev. Lewis C.,	Dean, Agnes, M. D.,	Haupt, Rev. A. J. D.,
Boies, Ethel M.,	Denniston, Mrs. E. C.,	Hastings, Charles P.,
Boies, David,	Daniel, Gustav,	Hoffman, Jacob D.,
Boies, Helen M.,	Emlen, Samuel,	Hampton, John D.,
Bartlett, J. Henry,	Elkinton, Joseph,	Hensell, Mrs. George W.,
Booth, Henry D.,	Eisenlohr, Otto,	Holmes, Jesse H.,
Biddle, Catharine C.,	Engle, Rev. Solomon G.,	Jester, William T. W.,
Beatty, Robert L.,	Fleisher, B. W.,	Kennard, William,
Benze, Rev. C. Theodore,	Fullerton, Spencer,	Koelle, William,
Buckler, Arthur,	Fricke, Esther,	Kennedy, Harry,

Biddle, Hannah S.,	Fassett, Mrs. Horace,	Kemp, Agnes, M. D.,
Bradford, Elizabeth,	Franklin, Melvin M., M. D.,	Koons, J. Albert,
Belfield, T. Broom,	Fernberger, Henry,	Lovett, Louisa D.,
Bright, Mrs. Robert S.,	Garrett, Sylvester,	Lytle, John J.,
Bradford, Robert P. P.,	Grafley, D. W.,	Leeds, Deborah C.,
Barakat, Layvah,	Garrett, Elizabeth N.,	LeFevre, Charles H.,
Conderman, Ethel,	Grant, Mrs. W. S., Jr.,	Lawrence, Mrs. P. W.,
Converse, John H.,	Gilbert, W. H.,	Latimer, Rebecca P.,
Clark, Mrs. E. W.,	Grubb, Mrs. C. L.,	Latimer, George A., Jr.,
Colton, S. W., Jr.,	Garrigues, Samuel B.,	Lewis, Theodore J.,
Colton, Mrs. S. W., Jr.,	Gerstley, Mrs. Louis,	Lewis, Mary,
Clark, Miss F.,	Gerhard, Luther,	Lamerdin, Rev. Philip,
Collins, Henry H.,	Galenbeck, Louis,	Longshore, Frank H.,
Clark, E. W., Jr.,	Gerhard, Arthur,	Layton, Mrs. S. W.,
Callahan, John,	Gerhard, Mrs. Arthur,	Liveright, Benjamin K.,
Clemmer, Jonas G.,	Gormly, Mrs. E. W.,	Mason, Mrs. M. A.,
Cassel, Henry C.,	Green, Sallie H.,	Miller, Isaac P.,
Morton, Charles M.,	Rosenberg, Marie,	Tomkins, Rev. Floyd W.,
Martin, Hon. J. Willis,	Robinson, Anthony W.,	Tatum, William E.,
Mayer, Mrs. Henry C.,	Reeves, Francis B.,	Unger, Mrs. J. F.,
Meloney, George R.,	Randolph, Mrs. Evan,	Uhler, G. H. S.,
McHenry, Rev. H. Cresson,	Randolph, Mary,	Vaux, George,
McDole, Charles,	Riehlé, Mrs. M. B.,	Votaw, Albert H.,
Mewes, Mrs. L. M.,	Senft, Rev. F. H.,	White, Elias H.,
Meyer, Rev. H. E.,	Spellissy, P. H.,	Wentz, Catharine A.,
Maier, Paul D. I.,	Scattergood, William,	Whelen, Emily,
Noblit, Joseph C.,	Stokes, Dr. William C.,	Warren, William C.,
Nicholson, Robert P.,	Schwarz, G. A.,	Wetherell, Mary S.,

Overman, William F.,	Snellenburg, Samuel,	Wetherell, George S.,
Ohl, Rev. J. F.,	Snellenburg, Mrs. Samuel,	Walton, Harrison,
Oetinger, Albert,	Starr, Frank H.,	Wilbur, Henry,
Pooley, Frederick J.,	Schafger, R. C.,	Young, Jos. H.,
Platt, Laura N.,	Stillwell, Mrs. E.,	Wright, A. J.,
Platt, Miss L. N.,	Smallzell, John,	Yardley, C. C.,
Parker, George F.,	Thomas, Augustus,	Ziegler, J. W.,
Rosengarten, Joseph G.,	Thomas, Mrs. George C.,	Zimmerman, E. M.,
Reger, George J.,	Thomas, Augusta,	Zimmerman, Mrs. E. M.

THE AMERICAN PRISON ASSOCIATION

The American Prison Association met in annual convention in the city of Richmond, Va., November 14-19, 1908, with an attendance of five hundred and twenty registered members and visitors. All but ten States of the Union were represented, together with the District of Columbia, Canada and Cuba. Pennsylvania had thirty-nine representatives to its credit, ten of whom were members of The Pennsylvania Prison Society, including its President, Vice President and the Secretary of its Acting Committee.

The sessions began on Saturday evening in the auditorium of the Jefferson Hotel. After the invocation by the Rev. Russell Cecil, pastor of the Second Presbyterian Church, addresses of welcome were made by the Hon. D. C. Richardson, Mayor of Richmond, and the Hon. Claude A. Swanson, Governor of Virginia. These were followed by a brief response by Prof. Charles R. Henderson and the address of the President of the Association, the Rev. Dr. J. L. Milligan.

SUNDAY, NOVEMBER 15

At 3:30 P. M. the conference sermon was preached in the First Baptist Church by its pastor, the Rev. George W. McDaniel, D. D. It made a profound impression, and is here reproduced in full.

SERMON

“He hath sent me to proclaim release to the captives.”—Isaiah 61:1-3;
Luke 4:18.

The eminent theorists and practical exponents of enlightened prison administration composing this national congress are arousing public sentiment to a necessity for an improvement of the physical and moral conditions in prisons and creating a growing interest in discharged prisoners.

Their philosophic conception and wise application of penological principles are hastening the abolition of cruel punishments, the substitution of reformatory for retributive systems, and the adoption of preventive instead of punitive measures.

The fruits of their labors are seen in the establishment of juvenile courts, the appointment of police matrons, the separation of the sexes and also of new from old, and incidental from habitual offenders; the humane treatment of the criminally insane; the study of the criminal, his history and environment; probation without imprisonment for first offenders, with friendly surveillance; the recognition of labor as a disciplinary and reformatory agent; the indeterminate sentence of the prisoner and his commitment to salutary influences; the abolition of public executions and the substitution of electrocution for hanging, and the establishment of higher standards of prison construction and administration.

An organization rendering such unselfish, valuable and abiding service to the delinquents of the country brings the entire nation under a sense of obligation, and deserves the gratitude and coöperation of all people. To have its members as the guests of our city is an honor of which we are pardonably proud, and to be invited to preach their annual sermon is a privilege for which I make most grateful and humble acknowledgment. Leaving the technical discussion to appointed specialists—though to invade their province is a temptation—I shall bring you a message from the Book of books, which I pray and hope may be becoming this occasion, may be blessed to your spiritual enrichment, and may be pleasing to Him whose we are and whom we serve.

The greatest of the Old Testament prophets was Isaiah. No other climbed so high the mountain peaks of prophecy or saw so clearly as he coming events. His anointed vision beheld unfolded in panorama the program of the Messiah's kingdom, and his purified tongue described the inner mission and the external glory of the Messiah's reign.

In the olden times of which Isaiah told, Jehovah glorified his people in the building and adornment of the temple, but in the coming days which he foretold, Jehovah was to be glorified by the binding of broken hearts and the beautifying of soiled lives.

The prophet with inspired skill drew a picture of Him who was to be the liberator of the people. Seven hundred years passed, and one quiet Sabbath day, in a small town in Galilee, Jesus of Nazareth looked upon that picture and declared that He was its original. Even so did Hawthorne sketch the stone face in the mountain, which long afterwards was realized by the youth of the valley who had gazed upon it and prayed to be like it. The words of the prophecy referred directly to the period of Babylonian captivity. Israel, in exile, longed for political deliverance. Dry expositions of the Mosaic law could not satisfy captives who waited for the proclamation of their freedom. They could not sing the Lord's song in a strange land.

They craved the assurance of the *fact* of God's love. Our prophecy is the communication of that fact. It meant more than political deliverance; it meant the graciousness of Jehovah's pardon, the beauty of his love and the pathos and triumph of his passion in their behalf. "Good tidings" and "proclamation" henceforth became the classic terms for all communications from God to man.

The words "gospel" and "preaching" were first employed in a religious sense in the Greek translation of this passage. Regular preaching developed during this period and took its place with sacramental worship. Then it was that the synagogue arose with its pulpit and became no less a factor in religious life than the altar of the temple. And it was in the pulpit of a synagogue in Nazareth that Jesus reread this prophecy and affirmed the fact of its fulfillment. Thus, the first public discourse of the matchless preacher was a proclamation of the gospel.

The deepest meaning of His message was spiritual. It was to the spiritually poor and blind and bruised and imprisoned, but its historical setting suggests the improvement of temporal conditions. Indeed, the twentieth century test of Christianity is its ability to do this very thing—to produce social values.

Jesus Christ astonished His hearers by His stupendous claims. His program sounded pretentious, and it was, for one who was less than the highest type of man and the very God himself. Do you comprehend the scope of Christ's undertaking? He himself defined it:

“To preach good tidings to the poor”—Almshouses.
“To proclaim release to captives”—Prisons.
“Recovery of sight to the blind”—Asylums.
“To set at liberty them that are bruised”—Hospitals.

He proposed a program of happiness for almshouses, health for hospitals, healing for asylums and freedom for prisons.

He announced that His presence brought the joyful year of jubilee, when liberty was proclaimed to slaves, release to debtors and the restoration of family estates to their dispossessed owners. In His mind the jubilee year typified the Messianic era, the period of the bestowment of a free, full and finished salvation. Oh! glorious era, foreseen in prophecy, inaugurated by Jesus, and drawing near through the benevolent efforts of this and similar organizations.

What then was the message and the meaning of Christ’s life as related to prisoners? I answer: He preached an evangel of emancipation. He proclaimed the privileges of the pardon. He promised a supernal splendor to the penitent.

He sanctioned punishment. Punishment is justified mainly upon three grounds: The vindication of the law, the protection of society and the reformation of the wrongdoer.

Jesus Christ sanctioned it for the same reasons. In the sublimest discourse ever delivered upon this earth he declared: “I am not come to destroy the law. I came not to destroy but to fulfil; for verily I say unto you, Until heaven and earth pass, one jot or one tittle shall in no wise pass from the law, until all be fulfilled.” Many of His acts were performed in order that “it might be fulfilled,” and the pendulum of His life swung through the arc of obedience. Among the elements entering into the mystery of the atonement is Christ’s vindication of that law, “The wicked shall not go unpunished,” by bearing the penalty in His own body on the tree.

Another ground for the imprisonment of the criminal is the protection of society. The Saviour's entire life gives authority and force to that position. Did He not teach that it is better for one member to suffer than the whole body? that the commonweal should control individual conduct? and did he not leave a violent robber unpardoned on the cross, whose liberty might have disturbed the public order?

You teach that punishment is also reformatory, and with you the Scriptures agree. To be very accurate, we should say that justice is satisfied by punishment, and the wrongdoer is disciplined by chastisement. Punishment is for the good of the law, and chastisement is for the good of the sufferer. Incarceration is intended to *reform* the prisoner as much as to punish him. While rebuking the lawless, you seek to help him back to an honorable career. This you attempt, not by a maudlin and demoralizing sentiment, which minimizes guilt or ignores wrong, but by a sympathetic and educational administration of prisons.

Sufficient support is found in the Bible for chastisement. Indeed, to spare the rod would more certainly harm the criminal than it would spoil the child. The rod of chastening, however, must not be held by a vindictive hand, but by one of love, and its strokes modified by a knowledge of the offender. Then it may become the saving agent in the life of the criminal, as the crosses of the thieves enabled them to see the cross of Christ.

Society writes over the convict's Inferno, "Abandon hope, all ye that enter here." Even Byron was more cheerful and charitable. His prisoner of Chillon, doomed to solitary despair, saw a rift in his prison walls. Dragging his chain, he climbed upward and looked through. There lay the silver lake framed in the mountains, and the blue heavens over all. As he gazed through tears for his dead brother, a bird began to sing:

A lovely bird with azure wings,
And song that said a thousand things,
And seemed to say them all for me.

The gospel sheds upon the prisoner the ray of light, uncovers to him the glad sky, thrills him with songs of redemption and inspires him with the hope of a better life. This must ever be the method of all successful prison reforms.

Reclamation is impossible except by creating self-respect and enkindling hope. To know that good behavior shortens the term incites all save the incorrigibly bad to a noble life. To sit in a dungeon of despair must make the prisoner indifferent to all the good without.

Two young women artists have painted a great picture, which should hang in every prison where all prisoners can see it. The benignant face of Jesus, full of love and compassion, stands out in glorious relief. A poor man, whom each prisoner might take to be himself, kneels with his back to the observer. The Master's hand is stretched toward the kneeling form, and He is saying, not in rebuke, but in hope, "I condemn thee not; go and sin no more." We decorate our libraries and public buildings with suggestive mottoes and inspiring scenes of history. We leave the prisoner to gaze through iron bars or look upon bare walls. Jesus Christ would adorn those walls with pictures of hope.

Jesus was not a reformer, but a Redeemer. He reforms man by regenerating him. His mission was not to Pharisees, but to publicans, and in his day the publicans and harlots entered in before the self-righteous.

He came to seek that which was lost. The modern church ministers mostly to the saved. Jesus showed a more excellent way. A convicted robber was the first fruit of the cross, and Gibbon records that the first Christian devotees were social outcasts.

Yes, Christ came to set the captives free—free from their old natures—by making them new creatures, free from the dominion of sin by providing them with the power of righteousness; free from the bondage of despair by enkindling a fadeless hope.

While blest with a sense of His love,
A palace a toy would appear;

And prisons would palaces prove
If Jesus would dwell with me there.

If we could completely change the nature of all prisoners in America, so that they would henceforth love good and hate evil, I venture that this congress would vote in favor of opening the jails and freeing the captives. Nothing short of that is the Gospel program.

Do you remind me that this is ideal? I grant it, but our ideals are the tides of the moon that lift the waters from the ocean of the commonplace. We shall not lower the standards to our lives, but rather raise our lives to our standards. When the decree of papal infallibility was declared there was loud and tumultuous confusion in St. Peter's. Archbishop Manning, of England, standing upon an elevation and pale with excitement, held the decree aloft in his hands, and exclaimed: "Let the whole world go to bits, and we will reconstruct it with this paper." To all of the pessimists and doubters, amid all the clamor and criticism of the world, we hold aloft the glorious Gospel of the Son of God, and say, "Let society go to pieces, and we will reconstruct it with this truth."

Christ proclaimed the privileges of the pardoned. One privilege is to live without suspicion. A certain writer in a recent and readable book takes the position that when a man is sent to the penitentiary even for a year, he is sent there for life, since he will always be regarded as a convict. Therefore, he concludes that a man ought not to be sent to the penitentiary at all. The fact which he states must be admitted with regret, but to adopt his conclusion would encourage wrongdoing and subvert the moral order.

True prison reformers will prefer the method of Jesus. When He forgives a sinner, He blots out the memory of his past life. The debt of sin is not only canceled, but erased. The pardoned are permitted to go in peace. How long will it take a Christian people to imbibe the spirit and imitate the example of their Lord?

The only stigma which He allowed to remain was that in the sinner's own memory. God forgives and forgets, but the forgiven sinner can never forget. The nails are out, but the holes are there still; there, mark you, to be seen

only by himself. God remembers them no more, and God's people, in beautiful and divine charity, ought to cover them from their eyes and thoughts.

When we shall have attained to this standard set by our Lord, we shall have gone a long way toward solving the problem of the ex-prisoner. To that noble end this Association is moving.

Society has no more perplexing question than the treatment of prisoners who have served out their sentence and desire to lead new lives. Minister as I am, I must confess that the average church member is unwilling to receive the ex-prisoner into his home, or even to look him in the face. People whose only superiority consists in that they have never been convicted scornfully raise their skirts and pass by on the other side. The punishment which society inflicts is more intolerable to the sensitive soul than confinement in prison walls. The ex-prisoner is free, but not restored.

Vastly different from modern society was the attitude of Jesus. He received publicans and ate with them. He went to be the guest of one who was a sinner, and he welcomed the approach of the shame-covered, broken-hearted woman, who came with her tears of penitence and alabaster of affection.

As the last Christmas approached a kind-hearted friend conceived the idea of securing a pardon for a young man who had committed a crime in hot haste, and was apparently penitent and reformed.

The Christian man said, "I want to present him to his mother as a Christmas gift." Armed with the pardon, he called at the penitentiary.

"Andrew," he said, "what would you think if I were to tell you I am going to get you a pardon?"

"Oh, sir, I would think it was too good to be true!"

"What would you say if I told you I had your pardon in my pocket?"

The young man threw himself at his benefactor's feet, clasped his knees devotedly and said: "Oh, captain, have you got it? Have you got it? Thank you, sir; thank you! Thank God! Thank God!"

The friend dressed him in citizen's clothes and escorted him to the priest (he was a Catholic), and had him swear faithfulness; then took him to his own home for supper, and treated him as a member of the family.

Christmas eve they rode together to the prodigal's far-away home. The train did not run fast enough, and the impatient youth, with sleepless eyes, read the name of every station. Tenderly did he cling to the friend, and gratefully did he thank him. As the train pulled into the home depot brothers, sisters and widowed mother were there to receive with tears and caresses the returning boy, and they were as happy that night as the home of the prodigal's father in the long ago.

The friend saw him safely among his family, and turned to go; but, no, they clung to him, they praised him, they prayed God to be good to him, and the ex-convict said, "You have treated me like a son and helped me to be a man."

My friends, if we had more of the Christian religion in our treatment of the erring, we would make it harder for them to do wrong and easier for them to do right.

The lot of the ex-convict is an exceedingly sad one. Be he ever so anxious to make a new start, he cannot do so without the encouragement of his more fortunate mortals.

How few concern themselves for him! Who will give him the hand of greeting? What business firm will trust or employ him? He needs help and cannot rise without it, and a nominal Christian public refuses to give it. They let him wander forth like King Lear, with uncovered head, into the dense darkness and sweeping storm.

Now the people who help that man to his feet again are the true disciples of Jesus. Excepting alone His purity, Jesus' most striking trait was His capacity for tenderness and helpfulness toward the straying. He believed in

giving the unfortunate another chance, and that is what He meant when He said, "Go and sin no more." Go, be a clean, respectable and successful woman. Go, and I am with you.

Paul wrote Philemon to receive back the runaway slave, Onesimus, and treat him as a brother. A prisoner is not fully saved until he is saved to society. He is not saved to society until he earns an honest living, and he cannot earn an honest living without the help of the more fortunate.

Fiction tells of one injured by his own sin, brutalized by injustice, and finally changed after nineteen years of imprisonment, who built factories, became a banker, founded a hospital for sick women, and an industrial school for children, and made a city and filled it with the hum of industry.

One day my 'phone rang, and I was asked by a Hebrew merchant and banker in this city to make an engagement to meet him and a young man in whom he was interested.

I called at the appointed time at the bank, and the business man said: "Doctor, this is Mr. Blank. He is one of the unfortunates. He ended his term in the prison last week, and I have secured him a position in a shoe factory. His mother is a Baptist, and I tell him he ought to be under the wing of the church, and I know you will help him and be his spiritual adviser."

Beloved, that was a unique and joyful experience. A Jew committing to the care of a Christian minister an ex-convict!

The young man was full of appreciation. He promised to meet me at the Sunday school the following Sunday morning. He was there bright and early. On his face shone the light that never was seen on land or sea.

With joyful emotion he confessed: "I have given my heart to Jesus since I saw you. He forgave my sins at the tent meeting Wednesday night. My mother wants me to join her church, and I told her I promised to meet you here this morning, and I must keep my promise."

You may be sure the minister was almost as happy as the convert, and very heartily was the young man urged to join his mother's church. He did so,

and is now a circumspect Christian and a self-supporting member of the community.

Jesus in His day found the greatest faith in a Gentile, and, lo! in our day, I have found the finest flower of Christian charity and helpfulness in a Jew!

He promised garlands of joy. Reverting to the prophecy in Isaiah, we find the beautiful promise to captive Israel: "Garlands for ashes, the oil of joy for mourning, and the garment of praise for the spirit of heaviness." One day they shall arise from the ashes of humiliation and march forth with garlands of victory wreathing their brow. Their weeping may endure for the night, but joy cometh in the morning. Their broken spirits have humbled their frames, but they shall yet stand erect and beautiful in the garments of praise. The Gospel penetrated the prison walls with that joyous news. And every chaplain who ministers to those behind the bars may promise them a salvation as full and free as any bishop offers to his parishioners.

God is no respecter of persons. If He is on one side more than another, it is the side of the weak. And often we are reminded that the compensations of salvation more than balance the losses of sin. "Where sin abounded, grace did much more abound."

Again, our prophecy says: "They shall be called trees of righteousness, the planting of the Lord, that He might be glorified." The Gospel undertakes the task of cleansing the defiled and clothing him in robes of righteousness. It proposes to make possible the survival of the unfit. It goes to the prisoner with this message of cheer and confidence: "You have been weak and wicked. You may be strong and upright. You have been a brittle reed, bent and broken by the winds of temptation. You may become a stalwart oak, withstanding all storms."

And this strength and goodness come through the abounding grace of God, which flows from Christ into the sinner's heart through the channel of faith. It is sufficient for all spiritual needs and is able to save unto the uttermost. It not only changes the heart, but the life, and brings forth fruits of repentance and righteousness.

To deny such power in the Gospel is to manifest the deepest *unfaith* and to doom to despair every repentant prisoner. And any man who does that is not worthy of a position in penal institutions. To believe it is to feel a solemn and binding obligation to commend that Gospel to the prisoner. Every prison official then seeks to better the moral and spiritual condition of the prisoners. He feels for them the unutterable compassion of Him who came to seek and to save that which was lost, and he sees underneath the prison garb the marred image of Deity, which may yet be restored and glow with the image of the heavenly.

The mission of the prison is for this more than for the protection of the innocent. It is for the reclamation and *restoration* of the delinquent. Leaving such an institution, the ex-prisoner might truly say: "I came in a thief, I leave an honest man; I entered a murderer, I depart loving God and man. My conscience, which once made me a coward, now makes me a true man."

The supreme hour of Christ's passion was devoted to two convicts. Let us stand a moment around that cross and hear the message it speaks to us. Does it not say, "The law must be executed"? for Jesus refused to accept the challenge to come down from the cross, and one of the malefactors by His side said they were receiving a just penalty for their crimes.

Does it not also say, "There is redemption for the penitent thief"? for when one cried, "Lord, remember me when Thou comest in Thy kingdom," the answer came swifter than light and sweeter than the murmur of the evening zephyrs, "To-day thou shalt be with Me in paradise."

Christ gave them both the same chance. One died in stubborn rebellion and was lost. The other turned in humble supplication and was instantly transformed from a criminal to a Christian. When heaven lifted up her gates for the King of Glory to come in, and He swept through the celestial portals, He took with Him the penitent thief as a first sheaf of the harvest of prison redemption.

The great poets have as their theme the loss and redemption of the immortal soul. Homer sings the wrath of Peleus' son in the "Iliad," and shows how one sin destroyed a building that many virtues support. Virgil sings the

wandering of Anchises in the “Æneid,” and describes how youth sails afar, while maturity seeks out ports of peace. Dante sings of the soul’s stain by sin in the “Divine Comedy,” and preaches its purification and perfection. Milton sings of man’s first disobedience and the fruit of the forbidden tree in the “Paradise Lost,” and “justifies the ways of God to man” in the victory of “Paradise Regained.” Tennyson sings of the error that ruins the soul in the “Idylls of the King” and beholds the Divine Friend, whose ceaseless efforts recover the undimmed glory.

Victor Hugo sings of the sin which defaces the divine image and which sears the conscience in “Les Misérables,” and exhibits the melting mercy and lasting love which recover the pristine splendor. That book is unique among the world’s literature in showing that in the heart of the meanest man is a nucleus of good around which a noble character may be grown.

Victor Hugo could never have written this immortal work had he not known Jesus Christ. Jean Valjean, the youthful criminal, after nineteen years, emerged from the prison with a heart as cold as marble and a will as hard as granite. Tides of revenge tossed through his soul like billows in a storm. Society has robbed him, and now he will rob society. The inhumanity of man has all but quenched the last spark of the divine within him.

In front of this convict, furious with the black wolves of hatred, Hugo, with the hand of a master, places the good bishop, sympathetic as divinity and patient as destiny. He speaks as an apostle of love, “We are ourselves ex-prisoners; let us be charitable.” As an apostle of justice, he declares, “The State that permits ignorance and darkness for the youth should now be sent to *jail with the thief*.”

Landlords close their doors to despised Jean Valjean. A woman casts her bread to dogs while he goes hungry. Coming to the bishop’s door, he is welcomed. “Sit down and be warmed, sir, and sleep and lodge with me. You are my brother. Take this money and never forget you have promised me to employ it in becoming an honest man.”

Conscience whispers, “Jean, you may go up by the bishop and be an angel, or stay below with the demons and be a devil.”

In that hour the sleeping virtues of his nature awoke, and he arose to return to God to sanctify his life. The thought of doing wrong went through him like a knife, and he became incapable of stealing. The bishop's smiles filled his heart with unspeakable happiness, and the power of God transformed the sinner into the saint.

In the end, when emaciated by suffering, scarred by many battles with wrong, he lay down to die, he said: "My children, remember God is above. He sees all. He is Love."

They saw him looking, like Stephen, into the open heavens, and heard him say, "I know not what is the matter with me, but *I see light*."

And the waiting angels bore his spirit away to the land of eternal day.

EVENING

The evening session was held in Beth Ahabah Temple. Homer Folks, Secretary of the New York State Charities Aid Association, presented the following report of the Committee on Prevention and Probation:

"To the average person the word 'crime' suggests some isolated act of an individual, having as to its origin little relation presumably to his other acts, still less relation to other persons, and no relation whatever to the community at large, except in its unfortunate effects. The instinctive feeling of the average person to the criminal is that he is an irrational being, and our hope is that he may be put away, or at least kept a safe distance from us. The average person's philosophy of crime is intensely individualistic.

"There are those, however, who challenge this view and deny it absolutely. Crime, they say, is not essentially individual; it is actually a social product, the result of a faulty social system. Adopt their plan of social reorganization and in their opinion crime will disappear. Without accepting the too easy optimism of the reconstructors of society, it is evident that their point of view is a valuable corrective of the extreme individuality of our earlier views. It must be evident to anyone who keeps his eyes open and tries to be honest with himself that crime is a joint product of the individual and his environment. A crime is not an isolated act; it is, as a rule, the last step in a

long process. It is at once a symptom and a result; a symptom of instability, a result of deterioration. It is the appearance at the surface of a stream whose source is far back, but which is for the greater part of the distance entirely hidden or not easily observable. It is an unwelcome fruit, but it has slowly ripened, in our presence, and on a tree which we have permitted to grow. The process of deterioration ending in crime is the resultant of the reaction upon the individual of the sum total of influences, economic facts and associations constituting his environment.

“Seen from this point of view our subject becomes bewilderingly comprehensive. The prevention of crime is one of the important results hoped for from the long process of civilization. It is an end toward which many diverse influences are consciously or unconsciously directed. Many laborers in many fields, unknown to each other, are working for this result. Among them we may mention every church which is teaching the subordination of the present pleasure to the future greater good; every home circle in which dignity and strength of character are being built up; every health officer who is conscientiously laboring to restrict the ravages of preventable diseases; every teacher who inculcates self-mastery by precept and by example; every public official who is striving to make effective the public will for better things; every employer who seeks to soften the iron law of competition—in short, all those who, in individual effort or in organization, are trying to build up a saner, more wholesome, better-knit community.

“As many forces are working for the prevention of crime; so also many are working for its production. Wherever the illusory pleasure of the present is exalted above the ultimate good; wherever luxury is ostentatiously displayed; wherever human weakness is exploited for financial gain; wherever the public will is thwarted; wherever the heart becomes hard and the eye steely; wherever duty is evaded; wherever disease is unchecked—in all these ways crime is encouraged and promoted.

“The prevention of crime, therefore, is a topic not for a brief paper for a portion of one evening’s exercises, but for a constructive program for generations. We may, nevertheless, single out two or three factors in the

production of crime, as to which the time seems peculiarly ripe for corrective action.

“We would mention first the frequency with which the very agencies established and slowly worked out by the community for the punishment of crime, or for its prevention, become agencies for precisely the opposite result; and by their action tend to increase and to propagate crime rather than to diminish it. I have in mind specifically our criminal courts and our penal and reformatory institutions. Who has had opportunity for close observation of our criminal courts without being impressed by the extraordinary element of chance that enters into all their operations! How many chances there are that the offender will not be arrested at all; and how many chances there are that if arrested the technical legal proof will be wanting; and how many chances there are that if the technical legal proof be forthcoming the resources of an ample purse will be sufficient to tie up the proceedings in an endless tangle of complications which an ordinary lifetime is too short to unravel. Under these circumstances the offender almost invariably feels himself the victim, not of his own wrongdoing, but of chance. He regards the operations of the law not as expressing slowly but surely the community’s sense of right and justice, but as the gambler watches the cards or the dice, and, with all the gambler’s belief in luck, is confident that the penalty will not finally be actually inflicted.

“And if we add to such a degree of chance as perhaps must of necessity exist, the belief spread abroad in the community, whether rightly founded or otherwise, that political, personal or other improper considerations reach out and influence the decisions which are supposed to take cognizance only of the law and the facts, we have gone a long way toward a state in which every man feels justified in being a law unto himself.

“But when the law grips and the culprit finds himself behind the bars of the jail or the reformatory, what processes have we set in motion? I suppose that of all the factors that have entered into the production and encouragement of crime, the consensus of opinion among those competent to judge would place the county jail foremost. With what inconceivable callousness we have thrown into promiscuous association those not yet determined to be guilty of an offense (and of whom a goodly number will

finally be declared innocent) and those against whom the judgment of conviction has been entered! With what inconceivable shortsightedness we have mingled those guilty of the least offenses with those to whom vice and crime have become second nature, and under circumstances of enforced idleness and enforced association! Worst of all, children arrested for even the slightest offenses, and occasionally for no offense other than homelessness, have been unintentionally made the pupils of adepts in every form of vice and crime. I am painting no imaginary or fanciful picture; I am describing the thing that has existed, and still exists, throughout practically the entire United States. The county jail is the classic instance of an institution established to serve one purpose and actually serving exactly the opposite purpose, intended to promote the good order of the community, and actually a most potent factor in every form of demoralization, an agency by which the traditions of crime are handed on undiminished from one generation to another, by which the ranks are kept full and new recruits at least equal in numbers those who drop out.

“And as to our penal institutions for the care only of convicted offenders for considerable periods of time, what is the net effect of prison life upon the prisoner? We would like to think that the work of John Howard has been substantially completed. We gladly recognize the fact that a large and increasing number of prison officials, such as those present at this national congress, sincerely desire and earnestly labor for the good of their prisoners, but I suspect that they would agree with us that the inherent and almost unescapable tendency of prison life, even in the best institutions, is not to build up either the physical or moral stamina; and unfortunately not all officials of penal institutions are in attendance at this congress, and not all are represented by the spirit which is here present. The work of John Howard has to be done over again with each generation. There are only too many prisons to which the biting words of Oscar Wilde would apply:

“The vilest deeds like poison weeds
Bloom well in prison-air:
It is only what is good in Man
That wastes and withers there:
Pale Anguish keeps the heavy gate,

And the Warder is Despair.

“For they starve the little frightened child
Till it weeps both night and day:
And they scourge the weak, and flog the fool
And gibe the old and gray,
And some grow mad, and all grow bad,
And none a word may say.

“With midnight always in one’s heart,
And twilight in one’s cell,
We turn the crank, or tear the rope,
Each in his separate Hell;
And the silence is more awful far
Than the sound of a brazen bell.

“And never a human voice comes near
To speak a gentle word:
And the eye that watches through the door
Is pitiless and hard:
And by all forgot, we rot and rot,
With soul and body marred.

“The establishment of juvenile reformatories has always indicated a realization of the evils of leaving children uncared for and equally of the evil of committing those of tender years to penal institutions. Born of a benevolent purpose, to what extent have they in practice realized the intent of their founders? When we contemplate the extent to which prison methods have been reproduced in juvenile reformatories; the extent to which cells and bolts and bars have been deemed necessary; the severe and oftentimes brutal punishments inflicted; the mingling of those of tender years with those much farther along in the school of crime; the absence until recently, and in many instances at present even, of facilities for suitable industrial training; the woeful inadequacy of any system of care or oversight while on parole, we are obliged to admit that even the juvenile reformatory has not been an unmixed blessing; that many have learned within its walls far more about wrongdoing than they knew before; and that

its *régime* has been too often far removed from that which would develop strength of purpose and strength of character.

“The recent revolution in the methods of some reformatories which find its most complete expression in the New York State Agricultural and Industrial School of Industry, near Rochester, N. Y., is the strongest evidence of the weakness of the other plan. At this institution the boys are subdivided into groups of twenty-two each. These groups are not placed closely about a central “Village Green,” but are scattered as widely as possible over an area of fourteen hundred acres of fine farming land. Each group has not only its cottage, but its barn, its live stock, etc. The boys lead as nearly as possible the life of the ordinary farmer’s son. You might drive through the grounds of the institution without recognizing it as an institution. Its work is commended to the serious consideration of all those interested in juvenile reformatories.

“At the outset we indicated, however, that the great forces for the prevention of crime are to be found not in institutions, but in influences; not in repression, but in development; not so much in discipline as in affection; not in coercion, but in care. To provide these things, it is not always necessary to remove the juvenile offender, even though he be a real offender, from his home. We have in the past decade witnessed an extraordinary development in many States of the Union of a system which is in effect an effort to carry personal interest, care, affection, uplifting influence, inspiring personality, into the home. This is the probation system. The probation officer is simply a representative of the community striving to make up that which has been lacking; to counteract the slowly acting influences which have made for deterioration; to set in motion the recuperative factors in the individual and in his immediate environment.”

The subject of probation was further discussed by the Rev. Dr. A. J. McKelway, of Atlanta, who spoke on “The Need of Reformatories and the Juvenile Court System in the South”; and by Henry W. Thurston, Chief Probation Officer, Juvenile Court, Chicago. Dr. McKelway said in part:

“It is time that our Southern States awoke to the crying need for the humane and merciful treatment of the children who go astray; it has only to avail itself of the experience of other States to meet the need. If it be said that our

poverty is yet too great to undertake the additional expense, be it said in reply that we are too poor not to save to the State the criminal expenses that inevitably follow the lack of such reformatory institutions, and that the restoration of one child to a useful life, from a life of crime and shame, is well worth the attention of any civilized State.

“And when we learn to treat the young criminal properly, to consider the unfortunate environment which breeds crime, we should be led to the consideration of the larger problems involved and the reformation of the adult criminal, that he also may be, wherever possible, transformed into a man, instead of being hardened in iniquity.

“In the State of Georgia, during the investigation of the convict lease system, a pitiful case was presented to the attention of the legislative committee of investigation. A white boy, sixteen years of age, was sentenced to the chain gang for stealing a pot of ham. While at work on the chain gang he resisted the too near approach of one of the warden’s hogs, and threw upon the hog some of the hot coffee with which he was supplied. For this crime Abe Winn was beaten until even, in the judgment of the camp physician, he was fit only for the hospital, and he entered the hospital, to be removed in a few weeks as a corpse.

“There are many such instances of cruelty to young convicts, white and black, for which the State has provided no better reformatory than the chain gang, and yet people of the South are a humane people, abhorring cruelty.

“The final argument for the extension and complete adjustment of the juvenile court system in the South and for the building and proper maintenance of model reformatories is the development of the factory villages of the South, with their system of family labor, including the labor of the child. There are now some seven hundred or eight hundred of these communities in the South, either entirely separate from other communities or forming a separate section of our municipalities.

“It has been amply proved that the ranks of our criminal population are not being recruited from the schools, but from the army of neglected children, especially the army of the toiling children. It is a matter of commonest complaint of the managers of our factories where children are employed

that both the boys and the girls, especially the boys, so soon become unmanageable.

“Their arguments in opposition to child labor laws really amount to the plea that these children of the factory villages must be sentenced to labor in the mills, either by day or by night, in order that they be kept out of mischief.

“I hold that the child labor system or the family labor system—in the one case the mother being kept at work and away from the duties of the home; in the other case, the children early developing, as bread-winners, first the spirit of independence, then of irreverence, disobedience and finally hoodlumism—is responsible for this state of affairs.

“We are making progress in the South in the correction of this abuse. At the same time there is urgent need for the proper handling of these children of the factory districts, under authority of the law, when they manifest their disposition to recruit the criminal classes.”

On the question, “What Should the Probation Officer Do for the Child?” Mr. Thurston said: “Two theories are now in conflict in the United States, one that it is enough to look after the child thirty, sixty or ninety days, keep it out of court, and then discharge it; the other, that if something is wrong with the child’s intellectual, physical and moral adjustment, this must be found and, if possible, corrected.

“The delinquent child is an embryo enemy of society as now organized,” he said. “The duty of the probation officer is far more than the collecting of fines, receiving reports and carrying out explicit court orders. He has an opportunity to get in close touch with the youthful criminals as few can.

“Of course, the child should be made to obey the law and live up to court orders. There can be no two opinions on this point, but mere external conformity is not real obedience, and the probation officer must strive to reach the sources of the child’s delinquency.

“It is therefore his duty to study each delinquent child as the physician studies his patient. Successful diagnosis is essential to intelligent service. It is not enough that a probation officer visit a child regularly. He must visit

with definite plans in mind and make definite record of the same with results. At least these phases of the child's life must be constantly attended to."

MONDAY, NOVEMBER 16

MORNING SESSION

At ten o'clock the Wardens' Association held its meeting, with Vice President W. H. Haskell, of Kansas, in the chair. After paying a beautiful tribute to the deceased President, Warden C. E. Haddox, of West Virginia, Mr. Haskell introduced the Hon. R. W. Withers, of the Virginia House of Delegates, who spoke on "Convict Labor on the Public Highways," and explained in detail the workings of the Lassiter-Withers road law in his State.

"The roads there used to be described in very uncomplimentary terms, but now there are many miles of good macadam roads in the commonwealth, thanks to the wisdom of the State and the strong arms of the convicts.

"No prisoner with a sentence longer than five years is allowed to work on the roads, and jail prisoners are worked in separate gangs and without stripes. There are twelve gangs now working in different parts of the State. A prisoner awaiting trial may work also, if he so elect. If he is afterwards acquitted he is allowed fifty cents a day for every day that he has worked. If he is fined this amount may go toward the payment of the fine, and if he is imprisoned the time counts on his sentence. The success has far exceeded the expectations of the most sanguine. The men are healthier, happier, better morally; and the counties are getting good roads.

"The State employs an expert engineer at \$3,000 and three consulting engineers without pay. The county furnishes material and tools, the State labor and brains. The county makes an application for convict labor for a certain road to the Highway Commission and the road is surveyed, a careful estimate given, blue prints prepared and the county then considers the matter. If it accepts the estimate a requisition for convicts is made and they are put into tents or portable iron cabins, where they are housed at night and in stormy weather. At night a guard with a rifle is on duty, but each convict

is also chained by the leg. By day they wear no chains, but are under the surveillance of a gun.

“When they first come from the prison they are not very strong. None of them is allowed to do more than ten hours work a day, less in winter. After a few weeks they show a great change in appearance and in strength, and statistics show that with the better food and the fresh air they increase in weight, on an average, fifteen pounds. Last year in the penitentiary in a population of twelve hundred there were twenty-five deaths, and of those nineteen died from tuberculosis. Most of the prisoners are negroes, and tuberculosis is the most deadly disease among them. During the same period in a road force of seven hundred and eighty there was not a death.

“But another thing is important. You cannot reform men without healthy occupation. Crime comes chiefly from idleness, and inability to work from lack of training. This gives healthful work. Not a man has been found who, after trying it, would not prefer the outdoor work to remaining in the penitentiary. The common phrase is, “The road for me!” Under the old plan the State paid \$150,000 a year to keep these men in idleness, and there was nothing to show for it. Now a smaller amount is used with the result of good roads.

“The roads cost on an average about \$3,000 a mile. It costs about seventy cents a day for each man, to feed, guard, clothe, transport and recapture him; forty cents a day for feeding, guarding and transporting. At present there are four hundred and fifty men in the twelve camps, of whom more than half are jail men. The long-time convicts naturally become the best road builders, but the short-time men can do a great deal. In twelve months there were but eighteen escapes, and eleven of the fugitives were recaptured. Stone crushers, furnished by the county, are used, but all the work save running the engine is done by the convicts. Virginia furnishes abundance of stone. The men get it out of the quarry, ready for crushing, and after it is crushed pile it by the road ready for spreading. They also, of course, do the grading and surfacing.

“On Sundays the local preachers hold services in each camp and reading matter is provided, but there is no schooling. Whenever possible the road is cut off from public travel while the convicts are at work.

“The system of conditional pardon exists in Virginia. It is granted after they have served half their term if they are recommended by the board, but each man must have honest labor provided for him before he can thus be paroled. This still applies to these men. If they are sick or injured the county physician looks after them. This road-making experiment has been working eighteen months continuously because the climate is so mild the men can work outdoors all winter.”

Warden W. H. Moyer, of the Federal Prison, Atlanta, Ga., read a paper on the question, “Should Indiscriminate Visiting to Prisons and Prisoners Be Permitted?” The speaker distinguished between indiscriminate visits to *prisons* and to *prisoners*. He declared himself opposed to both. Visits to *prisons* are usually made only to satisfy a morbid curiosity, and often result in unjust criticism, destructive of public confidence. They should therefore be prohibited, excepting by those who are engaged in educational or charitable work. Visitors to *prisoners* are rarely prompted by morbid curiosity. With very rare exceptions such visitors are relatives. But only in specially meritorious cases should even these be admitted.

“To the young man of fine sensibilities a visit from his wife or mother would be deplorable. It may seem anomalous to speak of convicts with fine sensibilities, but the expression is perfectly proper and entirely applicable. There are such convicts, and that fact cannot be too well recognized.”

The speaker illustrated this view by relating the example of a young wife who at first decided to reside near the penitentiary in which her husband was confined, but who finally wisely decided to await his return to their distant home rather than to meet him in convict garb and amid a prison environment.

“Such instances are not isolated; there are many others of a similar nature which have occurred frequently in my experience, but, after all, they are at most exceptional, and merely establish what I have already stated, that a hard and fast rule absolutely prohibiting visits to prisoners is not now practicable, although such a rule would be justified in a very large proportion of actual cases.

“Answering, now, the question which is the subject of this paper, I submit my opinion that indiscriminate visits to the prison and the prisoners should not be permitted.”

AFTERNOON SESSION

Col. Joseph S. Pugmire, of Toronto, Ontario, submitted the report of the Committee on Discharged Prisoners. He said in part: “The day of the prisoner’s discharge is a critical time. So much depends upon how he starts life again. The attitude of society toward the released prisoner often hinders those who are trying to save him, and makes his lot hard. They say: ‘There goes a criminal; give him a wide berth; he is not to be trusted, but is coming out to do what he did before.’ I do not excuse his wrong, but I plead for such to have a chance. It is not enough to lecture him and even pity him. We must go beyond that. What impresses me with regard to these men (and I have dealt with thousands) is not that they are resentful and vicious, but that they are as helpless as babes, powerless to help themselves.

“I contend that we are doing society a great injustice, as well as the prisoner himself, to allow him to step into liberty again without some careful oversight. What the discharged prisoner needs is a real friend who will give him the opportunity to rise and do better on the causeway of redemption, meeting him at the prison doors, arranging a helpful environment and providing him with employment of some kind.”

In his address on “The Duty of Society to the Discharged Prisoner,” Bishop Samuel Fallows, of Chicago, emphasized two points: 1. The discharged prisoner is a man and a brother; therefore our sympathy must go out to him. 2. Society must do its utmost to rehabilitate the one who has infringed the law, and above all to give him employment. If a man is willing to work it is the best evidence that his reformation has begun. Statistics show that the majority of those who are again usefully employed turn out well.

In the discussion which followed, Warden Wolfer, of Minnesota, made the suggestion that prisoners should be allowed increased earnings for overtime, to be applied to the support of the families of married men and to give single men a start in business when they leave prison. In this he was strongly seconded by Dr. F. Emory Lyon, Superintendent Central Howard

Association, Chicago, and Warden McClaughry, of Kansas; and the latter was subsequently instructed to prepare a resolution on the subject to be submitted to the congress.

In his paper on "The Man with the Bundle," the Rev. Frank G. Brainerd, Superintendent of the Society for the Friendless, Kansas City, laid stress on providing the discharged prisoner with work and wholesome recreations and inspiring him with high ideals. In speaking of the work of his society, he said: "The men, upon release, are given every necessary assistance and care. It is the custom in the West to take the discharged prisoner directly to the home of the Superintendent, that for a few days he may live under his roof, sit at his table, find a home with his family and be made to believe that wholesome and clean ways of living are for him also if he wills it. It is the custom then to find him congenial employment, to fit him out an extra suit of clothes, a change of underwear and, if necessary, an overcoat. These are contributed by friends of the society over the State. A suitable boarding place is found, new friends are provided, money is loaned and board bills are guaranteed if necessary, and he is given friendship, oversight and counsel in his effort to live a new life.

"Little can be known by the public of the heroism and the pathos of the struggle which many a man makes with the all but overpowering odds against him. Success achieved by others with hardly an effort can be attained by him only after an almost superhuman struggle. Right choices that make themselves for others are absolutely heroic for him. Had he their habits and self-control, half the effort with which he now barely escapes failure would bring him splendid success. Knowing nothing of his battles, others cannot realize the fight he makes for his victories.

"*E. g.*, a Scotch-Irishman, forty-six years old, made the remark during his first meal at our home that it was the first time in his life that he had eaten at a table where they had napkins. He was not without much native ability and an instinctive mannerliness. His mother had died when he was a baby and he had had no home since seven years of age. He had been a drunkard for years, had been in jail several times for pilfering when drunk, and finally was sent to prison for breaking into a box car and stealing merchandise. He was released on parole. There never was a kinder man

about the house, and after he was provided with employment and a boarding place no week passed without his coming back once or twice for a little call. He said that it was the only home that he had ever had. He never drank another drop of liquor; he chose an entirely new sort of companions, and when discharged from parole had \$200 in bank. During that time, when the family of the Superintendent were away on a visit and the Superintendent himself away about half the time, this man was given the keys of the home and stayed there in full charge for seven weeks.

“Another notable case is that of a man who had been a criminal for thirty years. He had spent thirteen years in prisons and had stolen during the other seventeen years an average of more money each year than any prisoner’s aid society in the United States expends annually. He had never earned a day’s wages outside the penitentiaries. That man has been toiling in heat and in cold and has been self-supporting and absolutely honest for the last year and a half. In the panic last fall he was temporarily out of work and money, yet his courage did not leave him nor his success fail.

“Such men are in direst need. It is a happiness to grip their hands and to strengthen their purpose; to have them sleep under one’s roof, eat at one’s table and breathe hope and courage at one’s fireside. Some are good, some indifferent, some bad. It is not for us to choose among them, but to offer opportunity to everyone who knocks at our doors.”

EVENING SESSION

The presiding officer at the evening session, Mr. Hallam F. Coates, member of the Board of Managers, Ohio State Reformatory, and President of the Association of Governing Boards of Penal, Reformatory and Preventive Institutions, introduced Mr. H. Grotophorst, of Wisconsin, who addressed the meeting on “State Boards of Control,” and claimed many advantages for these as compared with the ordinary boards of public charities. In Wisconsin such a board, consisting of five members (one of them a woman), is charged with the maintenance and government of all the reformatory, charitable and penal institutions established or supported by the State. This board holds in trust all the property and money conveyed or bequeathed to the different institutions; appoints the superintendents, wardens, physicians, etc.; discharges these for cause; directs how the books

and accounts of all the institutions shall be kept; formulates the rules for their government; supervises the purchase of all supplies; makes all contracts; locates new institutions; and has the power of parole and of transfer from one institution to another. The speaker claimed the following advantages for such central control, to wit, constant visitation of the institutions; proper coördination between them; the elimination of controversies to which separate boards often give rise; uniformity in rules, salaries and methods of administration; freedom from politics; and above all far greater economy in expenditures.

In his paper on "Prison Management," Mr. John C. Easley, member of the Board of Directors of the Virginia State Penitentiary, said in part:

"There has been an increase of about one hundred per cent. in the proportion of colored felons in Virginia since 1870. There are nine times as many felonies committed among one thousand blacks as among one thousand whites. In 1880 we found one white felon for every thirty-nine hundred and thirty-two of white population, and notwithstanding the more rapid growth in our urban communities, where the percentage of crime is always greater, and notwithstanding a very considerable influx of foreign population, we found in 1900, when the last census was taken, that the proportion of felons among the whites had been reduced to one in every forty-eight hundred and forty-nine, thus demonstrating that with our present system of public education the percentage of crime among the whites has decreased. Whatever the reason for the increase in negro crime, whether our system of negro education is faulty, whether the negro lacks moral tone, whether his political diet is too strong, whether we are trying to fix the keystone in place while the arch lacks foundation, the situation must be met, and coming consequences must be provided for and against.

"So far as I am informed, the annals of history afford no example of two separate races successfully occupying the same country at the same time, upon the same terms, and when these separate races represent the two extremes of humankind, how great the necessity for caution. To each of you, therefore, I appeal personally to give this subject your most serious consideration, to the end that the best preventive measures may be adopted and crime lessened. There is no prison management so good as that which

keeps the prison empty, and there are no measures to keep it empty so effective as those which prevent crime.”

Mr. Easley’s address provoked some discussion. A negro delegate explained that the increase in crime among his race is confined to the lower classes, and does not apply to those who are attempting to elevate the race.

Prof. Henderson presented a paper on “Foreign Views of Our Indeterminate Sentence and Reformatory System,” in which he critically analyzed and answered the objections made against it by some German penologists on a recent visit to this country.

TUESDAY, NOVEMBER 17

On Tuesday the delegates were given a trip on the James River to Westover and return, and were entertained by the Local Committee with the most lavish southern hospitality.

EVENING SESSION

At eight P. M. the Chaplains’ Association held its meeting. In his address, the President, the Rev. John L. Sutton, of New Orleans, said, among other things: “Two of the greatest difficulties encountered in prison reform work are, first, the absolute need of good, moral men as prison officials—men who will take the spiritual meaning of the law and be, indeed, their brother’s keeper; for they are the ones who come into daily contact with the prisoners, and it is from them that the most good can be derived. Hence, here is a gulf that must be spanned, and how? Very easily. Physicians, lawyers, teachers, ministers—in fact, all professional men in positions of importance—must be qualified to take their places in life, and why should the guardians of eighty thousand souls be such a flagrant exception to this wise precautionary method? Why should they continue to be chosen irrespective of ability or character, and, as a rule, be drawn from the political world?

“Second. The other great need in prison reform work is that the churches as a whole bear their part in this great work; and I will speak of only my own church. In seven years’ connection with my conference exhaustive reports

and discussions of educational, missionary and temperance questions, all problems of importance, and with which I am in sympathy, have absorbed the time and attention of the preachers, but they have failed properly to consider the needful work of prison reform.

“I hold that over eighty thousand people behind the prison bars now in this great country of ours are in as great need of the missionary care and attention of our churches as the heathen in the wilds of Africa.”

“Reformatory Work from the Standpoint of an Active Minister” was the subject of a paper by the Rev. Hiram W. Kellogg, D. D., of Wilmington, Del. Speaking of the church as a factor in such work, he said:

“What are we doing to prevent delinquency? Is the church a real and determining factor in the life of the community? Is it the guardian of childhood against the ravages of greed and crime? Is it pleading for true home life, this citadel of civilization? Is it protecting motherhood and guaranteeing to every child the right to be born well? Is it curtailing the power of the saloon, the low theater? Is it cleaning the streets of suggestions of sin and making them fit for boys and girls? Is it opening its buildings every night in the week and turning its awful silence into the glad music of happy children’s voices?

“Is it surrounding boy life with safe associations and making the path of religion bright with such joys as will conserve him in after years by sweet memories? Is it supporting public schools and juvenile courts and every institution not of its own immediate work, but which are essential auxiliaries to preventing of wrongdoing?

“In short, is the church bringing its concentrated talent intelligently to the beginnings of human life? This is the hopeful field we have long known, but is it the most effectively worked? You have the facts, and facts rule our age; theories have no value beyond the facts that sustain them.”

Major R. W. McClaughry, Warden of the United States Penitentiary, Leavenworth, Kan., read the following paper on “The Chaplain from the Warden’s Viewpoint”:

“The warden is apt to regard the chaplain as a great help or a great hindrance in his work. The chaplain may often be justified in having the same opinion of the warden. Whenever the personal relations between the warden and the chaplain are to any extent strained, the latter is at great disadvantage. A very few remarks dropped by the warden may so discredit the chaplain with guards and prisoners as to utterly paralyze his influence and destroy his usefulness, and this without any charges having been preferred on either side.

“A friendly and well-meaning warden may often greatly handicap a chaplain in his proper work by loading him up with duties that do not belong to his position—*e. g.*, making him postmaster, newspaper inspector, librarian, schoolmaster and general executor and administrator—ante mortem and post mortem—of estates of sick and deceased prisoners.

“I do not think a chaplain ought to be required to inspect and pass upon the incoming and outgoing mail of prisoners. In the first place his training and education unfit him to read between the lines of letters that need inspection, while the mental drudgery imposed upon him, if he carefully reads all outgoing and incoming letters in a prison of ordinary size, unfits him for the proper work of his office. Besides, the knowledge that he has read all their correspondence prejudices against him many prisoners and renders his efforts to help them vain.

“I doubt the wisdom of placing him in charge of the library in a large prison, save as a general adviser and aid to the prisoners in enabling them to select helpful books to read, and this work can be done during his visits to the prisoners in their cells and dormitories. This visitation is the most important work that he can do in the prison, and should on no account be omitted. The preaching service that he renders will be far more helpful and acceptable—as will also his Sunday-school instruction—if it grows out of and is tempered by his experience in cell visitation. A pastor who wishes to become helpfully acquainted with the inner life of his parishioners does not summon them one by one to his office for interviews and see them nowhere else. No more can the chaplain follow that plan and hope to succeed with his parishioners.

“Sometimes a warden deems it his duty to apply certain portions of the thirteenth chapter of First Corinthians to his chaplain and require him to ‘bear all things, believe all things, hope all things and endure all things’; therefore it behooves the chaplain to be at all times as ‘wise as a serpent,’ and sometimes ‘as harmless as a dove’; but where the occasion arises (which fortunately is but seldom) for the chaplain to use the language of rebuke, it calls for the highest quality of courage, and the chaplain who then shirks or quails stamps himself as unfit for his high office.

“If the prophet Nathan, when he sought that interview with Israel’s king, had hesitatingly remarked that he had a very unpleasant matter to talk about, which might get into the newspapers and create a royal scandal, etc., the proud monarch would probably have kicked him downstairs. But the fate of a great nation depended upon his courage and when he said, ‘Thou art the man,’ his shaft of truth pierced the joints of the royal armor and brought the monarch to his knees. Comparing small things with great, even so may the fate of a public institution sometimes depend upon the fidelity to duty of one who esteems himself the least among all its officials, and when his word is backed by high courage and a consistent and blameless life, it may prove more potent for good than the utterances of wardens or commissioners or governors.

“From the warden’s point of view I beg to suggest that the clergyman who is called for the first time to the chaplaincy of a prison or reformatory should have the major part of his expectancy of life *before* rather than *behind* him. To make the chaplaincy a ‘snug harbor’ for the superannuated is unjust to the chaplain and to the institution. At no time in his life does a minister need to have his physical, mental and spiritual forces in fuller play than when he undertakes the chaplaincy of a prison or reformatory. He may grow old in the service, and his strength increase with his years because of his manner of life and the experience that faithful service has brought to him, but under ordinary circumstances the younger man has the best prospect of success.

“The question may arise, ‘Is anyone sufficient for these things?’ Not in his own strength, but ‘as thy day thy strength shall be’ is the promise held out to the sincere and faithful worker. And some of us can recall the names of

men who have achieved splendid success in that particular line of prison work. Especially does the name of one come to me who took part in the organization of this Association, who served his Master and his fellow-men so successfully in the Michigan State Prison that when he was granted rapid transit 'in the twinkling of an eye' from the very corridor of the prison to the glory which was awaiting him, left a memory so fragrant and so well beloved that the name of Hecox is still an inspiration to hundreds of hearts, which, years ago, were turned by him into the paths of righteousness."

WEDNESDAY, NOVEMBER 18

MORNING SESSION

The morning session of Wednesday was given over to the Prison Physicians' Association. Dr. Charles V. Carrington, of Richmond, read a paper on "Sterilization of Habitual Criminals." As a believer in the theory of transmitted criminality, Dr. Carrington proved himself a strong advocate of sterilization as a method of preventing the multiplication of criminals.

"Prevention of crime is the motto of our juvenile courts, reformatories, probation officers and societies for the aid of the discharged convict.

"After ten years of investigation as prison surgeon, I am unreservedly of the opinion that sterilization of our habitual criminals is a proper measure, and I believe that if habitually enforced it will lessen their number.

"The punitive side of our dealings with criminals is always to the front. Punish him is the first proposition. Lock him up. There are our Christianizing reformatory measures, splendid in their way, but for the habitual criminal there must be some powerful deterrent remedy, and sterilization is undoubtedly that remedy.

"When I say sterilize the habitual criminal, I know that an understanding of the term is necessary before my remedy would be a just one to enforce. The incorrigible 'second-term' man, as well as those guilty of arson, assault, train wrecking and murder, should be treated as habituals.

“All of us know that in many instances the criminal inherits his instincts. The detective of forty years’ experience will tell you that a large percentage of prison inmates are hereditary criminals. Now, if the grandfather had been sterilized, what a lot of crime and suffering would have been prevented. In our enlightened age we should stop this hideous reproduction of criminals and sterilize the grandson for the good it will do in the coming years.

“Certain families in Virginia have been regularly represented on our prison rolls for the past fifty years, and will go on unless the breed is stopped. I have sterilized two prisoners in my connection with the State Penitentiary, and in each case it proved as proper a health measure as the removal of an appendix.”

In a paper on “Tuberculosis and the Colored Convict,” Dr. Julian W. Sloan, of Richmond, said in part:

“Taking up the colored convict himself as a cause we readily recognize in his heredity, his racial predilection for tuberculosis, his poverty with its attendant evils, his almost total ignorance of proper living methods, factors potent for the propagation and spread of tuberculosis.

“Add to these factors inherent in nearly all our colored convicts the devitalizing and resistance-lowering factor of cell life—a factor in itself capable of so increasing the receptivity of convicts as to leap with a single bound to the first place as a means by which tuberculosis is propagated and spread. Add again labor in factories where hygiene and sanitation do not hold sway, where factory dust constantly fills the lungs of the convict. Add yet again the depressing effects inevitable from even the best prison discipline—add these causes together, I say, and we have a sum total that appals us and seems to deprive the poor convict of every chance to escape this terrible scourge.

“Conquering tuberculosis in our prisons, as elsewhere, is not to follow upon any one method or agency or from the unaided efforts of the medical profession. I am here reminded to quote to this effect from Dr. Alfred Meyer, of New York: ‘The most hopeful sign in the world-wide combat with tuberculosis is the steady growth and coöperation among all the agencies engaged. The first impulse in the campaign came from the medical

profession. Then gradually there came to our assistance sociologists, philanthropists, charitable and religious organizations, and finally municipal, State and national governments. If the chain which is to bind the scourge is ever to be forged it will be by the union of all the links hitherto disunited and by the substitution of systematic for sporadic efforts. That we are on our way toward this end was well illustrated during the recent session of the International Congress and Exhibition on Tuberculosis at Washington.'

"With the municipal, State and national governments awakening, as we see they are, to their sense of duty toward the man who goes wrong, and in their awakening providing that the square deal shall be given him—that he shall no longer be the object of vengeance, but a man to be detained and reformed and educated, I say, with this awakening a great stride has been taken toward the control of tuberculosis.

"I believe that Virginia has advanced *pari passu* with other States. To begin with, the indeterminate sentence, with its inspiring hope, holds much not only for the future of the convict, but for every day of his prison life. It insures, too, to a great extent, better everyday conduct. This in turn helps largely to eliminate corporal punishment, which is one of the most potent causes of mental and physical wrecks among our convicts. Of course, with lessened need for corporal punishment comes lessened need for other punitive measures, namely, solitary confinement, bread-and-water diet, dark cell, etc., all of which present dangers to the physical welfare of the convicts that check our criticisms of the horrors of barbarism.

"Another step taken here in Virginia that has reached far forward was the erection and fitting of the modern sanitary building which takes care in the most approved manner of about one half of our convicts at the penitentiary proper.

"Another step forward, and one of which the wisdom and far-reaching consequences for good cannot be over-emphasized, is the law that directs that, at the discretion of the judge, all men with jail sentences, and all men sentenced to the penitentiary for from one to five years, shall serve their sentences at hard labor on the State road force.

“This is a great advance, especially in ridding our jails of short-sentence men, who formerly served their time in idleness, filth and disease—men who usually entered jail as criminals and in fair health, to leave as devils incarnate and probably tuberculous.

“At the Virginia Penitentiary we have the constant and loyal support of the Board of Directors, Superintendent and their aides in obtaining and maintaining hygienic and sanitary conditions and in all that pertains to the health of the convict. I venture the assertion that few places, whether prisons or private dwellings, are kept more rigidly clean and sanitary than the cells of the Virginia Penitentiary. As an educating feature alone to the colored convict, this is well worth treble its cost and trouble. Sufficient ventilation is looked after constantly. In the old building we cannot claim perfection on this important score, but in the new building I believe we can. Ample bed covering is provided—this appeals to everyone as a very necessary adjunct to proper guarding against tuberculosis. The food at our penitentiary is ample, and after hundreds of examinations I can say that I have always found it wholesome. However, whenever a convict comes before the daily call and appears to need more nourishment it is our custom to give him milk as long as it seems necessary. It has been our plan for several years at the penitentiary to diagnose any cases of tuberculosis as early as possible and then have them sent immediately to our State farm to receive the benefits of open air combined with dietetic and other treatment deemed wise by our farm surgeon. The tent system at our State farm has been of inestimable benefit.

“It is a blot on our good name that we still have the bucket system in our old building. I wish to take advantage of this opportunity to strongly urge the necessity for the abolition of this system here and elsewhere.

“At the Virginia Penitentiary it is our custom to thoroughly fumigate the cells that have had in them tuberculous convicts. Our hospital wards are all regularly fumigated. Especial care is given to the fumigation of mattresses and convict clothing. Our convicts are taught from time to time the necessity of not expectorating on the cell and factory floors and walls, and we post liberally signs admonishing everyone not to expectorate on the walks.

“As will be seen we are merely endeavoring to put into operation those methods known nearly universally as the methods whereby tuberculosis may be prevented and cured.

“One recommendation I desire to make—and it is one that we will all agree is of very considerable importance—is that all cells, hospital, kitchen, dining room, factory, etc., be screened from flies.

“In my opinion this one recommendation, if carried out, would be a strong check to the spread not only of tuberculosis, but to other diseases as well. Another recommendation that would prove of undoubted profit to the State and a check to the spread of tuberculosis is that all convicts be required by law to spend as much as one to two hours or more a day in the open air exercising systematically. This—shall we call it recreation-health-exercise?—time, of one or two hours, could be arranged when contracts for convict labor were made.”

In his paper on “The Position a Physician Should Occupy in the Trial, Sentencing and Care of Criminals,” Dr. Theodore Cook, Jr., of Baltimore, made a strong plea for a larger recognition of the medical profession in all questions relating to the condition and treatment of the degenerate, sick and insane prisoner. His contention was that a great many criminals are sick either mentally or physically, and that when these appear for trial the State should see that their infirmities are recognized and treated scientifically. A recommendation made by him before the Medical and Chirurgical Faculty of Maryland was to the effect that before a person is tried for a serious offense his mental and physical condition should be examined into by a committee consisting of the jail physician and prosecuting attorney of the county where the defendant is to be tried and an alienist; the alienist to be appointed by the Governor on recommendation of the State Medical Society at a stipulated salary, and required to organize this committee in each county at stated intervals. This committee would be required to pass on the fitness of the prisoner to stand trial and receive sentence and to see that any infirmities were properly attended to; the youthful degenerate being given special attention, the sick healed and the insane sent to a proper institution to remain there until discharged by this committee. This committee should have full power to summon witnesses to investigate the

prisoner's condition. Its findings should be filed with the other court records before trial. Under these circumstances the committee would determine the mental responsibility of the prisoner, and to this extent relieve judge, district attorney and jury of a burden.

Dr. Cook also strongly urged that the physician should be given more authority in the various institutions for the detention and correction of the criminal classes, and that for the sanitary and hygienic condition of such institutions he should be held strictly responsible.

EVENING SESSION

In his report of the Committee on Criminal Law Reform, Mr. Roger Phelps Clark, district attorney, Binghamton, N. Y., said in part:

“As the law is to-day no power can force a witness to go from the State of Pennsylvania into the adjoining State of New York to testify there either before a magistrate or a grand or petit jury in a criminal case other than federal. Consequently it is often the case that criminals escape punishment and sometimes even prosecution. The punishment of criminals should not be a local issue.

“Unfortunately the criminal laws are drafted by criminal lawyers, who, as legislators, are seeking to protect a line of clientage, present and prospective, rather than their constituents.

“Corporate interests that now possess as many avenues of escape from regulation that can be made effective only by criminal prosecution, as there are different State governments, are unwilling to have these regulations made and enforced by the undivided power and responsibility of one sovereign law. To them each State government is as a city of refuge. One of the great questions to-day is whether government shall control the corporations or the corporations the government.

“It is a deplorable fact that generally throughout this country the judges presiding in the trials of criminal cases in courts of record are not sufficiently versed in criminal law. This branch of law is as thoroughly distinct from civil law as admiralty law is from ecclesiastical law.

“Judge Taft, in his address on the administration of criminal law, in June, 1905, before the Yale Law School, called attention to the small proportion of murderers that were punished. Possibly this is due in a degree to the lack of courage on the part of jurors. It seems as though better results are secured in States that have abolished the death penalty.

“Insanity to-day is usually the moneyed defense. The fact that a rich man with a homicidal habit can produce experts, apparently respectable, who will swear that at the time of the commission of the crime he was insane by reason of a brain storm, but is sane at the time of trial, has brought such expert testimony into merited contempt and the administration of criminal law into deserved distrust. The only thing to do with such a criminal is to keep him under lock and key away from the stormy stress of free life.”

The Rev. Dr. A. J. McKelway, in speaking on “The Abolition of the Lease System in Georgia,” gave a history of the system, described its inhumanities and traced the steps by which its abolition came about. Beginning when one hundred convicts were first let out for \$2,500 a year, the system grew to such proportions that in 1903 the price was \$225 a man. Many of the men were sublet at \$630 a year, and those who thus trafficked in human beings became known as “convict kings.” The abolition goes into effect on the first of April of the present year, and after that date the convicts are to be worked on the roads under State supervision, and on farms which are to be established. The reform was brought about by the overwhelming pressure of an aroused public sentiment; and Dr. McKelway summarized the present public opinion on this subject in the South as follows:

“First, it has been burned into the hearts of the people that it is not good for the State to make a profit on crime.

“Second, that the State should not delegate to any person or corporation not under its complete control the duty of punishing crime or of caring for the criminal, old or young, white or black.

“Third, that the working of felony convicts on the public roads or public works is an infinite improvement on the lease system; and that the working of misdemeanor convicts in the same way is an immense improvement over the old county jail system.

“Fourth, that the State farm is the best solution yet offered, with such manual and industrial training as may be given.

“Fifth, that the retributive idea of punishment is giving place at last to the reformatory idea.

“Sixth, that at least a fair proportion of the profits of the convict labor should be set aside for the helpless family, or as a fund for a start in the life of freedom.”

On motion of Joshua L. Baily, President of The Pennsylvania Prison Society, a resolution was passed congratulating the State of Georgia on its abolition of the convict lease system.

THURSDAY, NOVEMBER 19

MORNING SESSION

Mr. T. B. Patton, Superintendent of the Industrial Reformatory, Huntingdon, Pa., presented the report of the Committee on Prevention and Reformatory Work; and Mrs. Frances A. Morton, Superintendent of the Reformatory Prison for Women, South Framingham, Mass., spoke on “Outdoor Employment for Women Prisoners,” describing especially the various forms of outdoor work in her own institution.

AFTERNOON SESSION

“Prison Discipline,” especially in reformatories, was the subject of a most interesting address by Mr. J. A. Leonard, Superintendent of the State Reformatory, Mansfield, Ohio.

“I wish to speak on discipline for certain exceptional types in our reformatory prisons. I would first consider *the trusty*. There have been trustees ever since there have been prisons. In our own work I had in mind to employ a great many young men committed to the reformatory in a trusted capacity—not to make them informers, not to make them a bulwark of safety to the institution, not to pamper them, not to make them envied by the other prisoners, but because the dictum to treat all prisoners alike is

fallacious. All prisoners under certain given conditions should be treated alike. The even hand of justice is needed in a prison above any place else. But there are men sent to reformatories who would stay there if there was not a lock on the prison. I think fifty per cent. of the men sent to the Ohio State Reformatory would prove to be self-governing as to the matter of custody. It is to their interest to be so.

“In setting aside those who are trustees we appeal to intelligence and thoughtfulness. What has been the result? We had six hundred acres of land to farm, first as an economic proposition, and second as an agency for training. Originally our farm was a burden upon the institution, because all the farming was done under an armed guard. It was quite a spectacle for men to go along our public highways and see a boy, a convict, so-called, plowing corn with an \$840 man following him with a gun. It made expensive corn and was a shock to public sense. What could we do about this matter? To make the farm profitable, economically and valuable industrially, it was necessary to employ in this outside work a large number of men. I believed it possible to find young men who would go out and work faithfully without a great degree of restraint. I wanted to make the test and we put out fifteen men without an armed guard. Three ran away. That was not a comfortable experience. I put out thirty and five ran away. I put out sixty and four ran away. Last year we had on an average one hundred and fifty men outside unrestrained by any physical force, and we did not lose a man. What produced this change? A change in human nature? Not at all. We simply gave free play to an idea and the sentiment within the institution underwent a change. Three men out of the one hundred and fifty tried to get away. Two of them conspired together, one running this way and one that way. The officer was fleet-footed and captured one of them. (By the way, I have come to employ officers because they can run fast rather than because of their ability to shoot straight.) This officer caught one and supposed that the other had gotten away, but when he came up over the hills by the roadside he found him. He was on the ground; a fellow-prisoner was sitting on him and saying to him: ‘You lie still. We are not knocking you; we are saving you trouble. You know you will be caught. We are doing you good, but that is not why we are holding you. You are knocking the system that the superintendent is trying to start here to give us a fair show, and we will not stand for it.’ Public opinion in the institution is what made that

possible. How do we bring it about? Public opinion within the institution is largely influenced by our practical school of ethics. This school had discussed at great length this trusty system and had given full support to the idea. Discipline will not do it.

“The number trusted is growing larger and larger each year. We select them very carefully. I take a boy out quietly in the evening and have a talk with him. I ask him if he will voluntarily assume that responsibility. If he agrees, I produce a bond, one that has been prepared with some red ink, red ribbon and red seals and burdened with all the meaningless expressions that our legal brethren have burdened us with. At the bottom of it there are two clauses of plain English that the boy is supposed to understand. There is nothing like being impressive as he signs the bond. I say to him: ‘Now here is the place for your surety. Where are you going to get it?’ He replies, ‘I believe my folks will give it.’ ‘That cannot be done, my boy. This is an honor bond.’ Then, ‘I will do it,’ I tell him. ‘I will be your first friend and stand for you with the deputy.’

“I have signed ten hundred and eighteen of those bonds and only five have been dishonored. That experiment has been worth a great deal more than it costs. It costs some anxiety. Next year I expect to put out about two hundred men if I live. I shall put out more and more each year and I shall expect this good record to continue, simply because the fellows inside are standing for it and even in their language they distinguish. The fellow who scales the walls gets the applause that always goes with the deed of daring, but the fellow who goes out after signing a bond with the superintendent’s name to it, ‘takes a sneak,’ and when he is brought back he is made to feel it.

“Those trusties are never informers with us. We have never let them inform us. The other boys have no prejudices against them. They want to be with them, but I keep them as far separated as possible. If I were building a new reformatory the ground plan would look like a spider’s web and I would have a detached cottage for those who have proven their trustworthiness.

“The second exceptional class calling for special discipline is *the bankrupt*. You men who have to deal with the indeterminate sentence know that no board of managers or set of men can make rules that will meet the peculiar

needs of individual cases. You and I know that in every prison there are boys who cannot gain eligibility for parole under rules made for the average, notwithstanding the fact that they are not guilty of serious offenses, nor are they regarded as malicious or dangerous. They become bankrupt because of the accumulation of demerits for this thing and that. What are we going to do? If I excuse those reports it becomes a personal favor, which is wrong and leads to bad feeling. I asked myself the question: 'What has society in all time done to meet such cases? What is done in the economic world?' I recently read an article which said that sixty per cent. of the successful merchants were bankrupt some time in their life. If a man who has carried on a business comes into court with clean hands he is given the benefit of bankruptcy; his obligations are canceled and a new opportunity is afforded him. I asked myself the question, 'Why can we not have something of like character here?' So I instituted a bankruptcy court. Our general disciplinarian holds court on all offenses and fixes penalties under the general rules. There is, however, a right of appeal, first to the superintendent, and finally to the president of the Board of Managers. Why then another court? I wanted a court which would be free from any prejudice on account of the boys' record, so I selected the assistant superintendent, who, while charged with the discipline in a general way, does not pass upon the original offenses, and then the chaplain, who has no embarrassing relations at all as to discipline. With these two officers we instituted a court in which were represented both the law and the gospel. The Board of Managers heartily approved the innovation. The rules governing that court are as follows:

"Any inmate, who because of misconduct has lost so much time as to render the prospects of his parole extremely remote, and who, in good faith, has resolved to establish a good record in the institution, may make written application to the superintendent for an exercise of clemency that may come within the superintendent's discretion under the rules of the institution.

"If the party making the appeal for clemency has a clear record for thirty days next preceding the date of the application, the appeal will be referred to the Bankruptcy Court, consisting of the assistant superintendent and the chaplain, who will give the applicant a hearing,

carefully review his case, and make a report of their findings to the superintendent. In case the appeal is granted, the applicant will be placed in the second grade under the same conditions as apply to inmates on first entering the institution, and his consideration for parole will not be prejudiced by his previous record.

“Any inmate who shall have served one year in the second grade, and who has failed of promotion to the first grade because of minor acts of omission or commission, may make written appeal to the superintendent for promotion to the first grade, and his case will be dealt with in like manner and on like conditions as stated above. The superintendent will not remit time lost or make special promotions except in the manner above indicated.

“People who come to our institution sometimes ask, What is the best thing you have done? In making reply I do not point to any material thing. I call attention to the bankruptcy court. It has relieved us of embarrassment, strengthened our discipline, opened the door of hope, extracted the teeth of criticism. It has done wonders in this direction. I had a talk with one of those sinister, embittered boys one day. He was sullen, not personally insolent to me, except in a degree unconsciously, and I said to him, ‘I am thinking, my boy, of that good day coming when you will do just the opposite.’ He said, ‘Why do you think that day will ever come?’ ‘Simply because you have sense enough in your head; it is sure to come. You are not so bad. You fancy you are a bad fellow. You are bad enough for all practical purposes, but you are not so bad as you think. All you have to do is to turn around. You are a six-cylinder fellow. You have force and will, and you have obstinacy and lots of other things you ought not to have, and when you turn around, then we are going to have one of the best boys instead of the worst.’ He said, ‘You cannot make the officers of this institution believe I would turn around.’ I said, ‘No, but you and I can make them believe it, not I, but you and I, and I shall expect it some day.’ After six weeks there came this letter from him: ‘I have turned around, but in doing so I’m face to face with a hopeless lot of demerits, and I therefore appeal for the benefit of the bankruptcy court.’ He was working in the right direction. I would not take the time to tell you his career afterwards. It was all I hoped for.

“The third type that requires special methods of discipline is the sinister ‘smart Aleck.’ A boy of this type came to me in a very insolent way and said, ‘I am a worse man than when I came.’ I replied: ‘I have talked to you often, and for the first time your opinion coincides with mine. I believe you are, as you declare, a worse boy than when you came.’ He said, ‘What is the good of a reformatory?’ I was sorely puzzled how to deal with that boy. I said to him, ‘Do you think a place makes a man good or bad?’ ‘This place has made me bad. No reformatory reforms anybody.’ ‘My boy, do you believe heaven is a good place. Do you think the rules and regulations reasonable up there?’ He replied, ‘I expect so.’ ‘Do you not know that one of the excellent but opinionated inhabitants of that place got out of tune with it, found fault with the management, created dissatisfaction among the weaker angels and created no end of trouble, and the Creator had to provide another place? Do you know the identity of this trouble maker?’ ‘Yes, the devil.’ ‘Do you know where he is?’ ‘Yes, in hell.’ ‘He is not in hell all the time, as long as you feel as you do now.’

“After a little further discussion he was asked if he saw the point of the illustration. He said he guessed he saw where he was headed for, according to the example I had held up for him. I then showed him what a privilege it is to be able to profit from the example of those who have made a failure rather than to share their experiences. He thereupon threw aside his cynicism and admitted in the most candid way that he had been irritable and ugly and expected to be punished, but that my patience, taken with the illustration, had made him feel differently, and that he would demonstrate to me that he was not the devil or his accomplice, nor would he be a trouble maker. He on more than one occasion later referred to the fact that the devil had been a saving agency in his reformation.

“The cynical fellow is apt to have sufficient intellect to which to make successful appeal. I think of a prison as simply a fulcrum for the lever of reformatory effort. By the sentence of the court confining these two young men heretofore referred to, I was afforded the fulcrum to bring to bear the right kind of discipline.

“The next type calling for special discipline is the *outrageous fellow*. I have asked myself what reason there is in psychology, in humanity or in common

sense for making a prison a silent tomb. How can we hope to socialize young men by denying them communication by speech? If a man refuses to talk or laugh, incipient insanity is at once suspected. With these thoughts in mind, I thought I would do away with the rule requiring silence in the dining room. Hoary-headed tradition forbade it; prison administrators in whose wisdom I have the greatest confidence questioned it; but I was impelled to try it. All went well until one day the 'outrageous fellow' referred to was brought to court charged with quarreling with his neighbor at table, hurling a large porcelain bowl of tea into his opponent's face, slightly burning him and cutting an ugly gash in his head. The most serious offense, however, was creating a condition in a crowded dining room favorable to riot. It was the opinion of our officers that he should be severely punished, their idea of punishment including the infliction of bodily pain. I agreed that he deserved whipping, but reminded the officers that this world was not entirely established on the basis of desert; that the best of us had little claim to heaven on that basis. We did not whip him, not because he did not deserve it, but because we owed it to him and to the institution to do that thing that would most positively quicken the moral sense and create a wholesome public sentiment. Calling him up, I told him that he had put me to shame; that he had justified all my critics who said that I would get into trouble by allowing the boys to talk at the table; that he was the only one out of a thousand that failed to appreciate what had been done for him. 'Now,' I said to him, '\$1' This method, I believe, had the approval of practically every inmate of the institution. The boy himself said that he would rather be whipped, as he felt that he had been whipped every time he came into the dining room and turned his back to the other inmates; they would all feel that he was unfit to be with them. After three weeks he made full amends and was allowed to join his fellows, and never gave trouble afterwards.

"Another closely allied to this chap is *the rebellious man*. All prison men will agree that of the troublesome prisoners the rebellious man must be most promptly and effectually dealt with. I have friends who are my superiors in knowledge and wisdom who favor corporal punishment or handcuffs or the dark cell. I would not have a dark cell in the institution. Instead, I make the punishment cell lighter than any other. Why? That is not based on sentiment. If a bear wants to hibernate he hunts the dark cave. If

you and I want rest we want the hours of darkness. If the creeping things of the earth want to get rest and dull their sensibilities they hunt a board or a log. The light is the most stimulating thing in all the world, and what I want to do with the rebellious inmate is to put him in a light cell. I want to stimulate him. Our reflection chambers are large, light and airy and so arranged that the occupants can smell every dinner that is cooked and hear the band and the boys playing ball. It gets to be uncomfortable and they want out and they want out badly. What is the result? They go to the deputy and say they are wrong and want to start new. If you whip a boy in prison he will suffer martyrdom if he can but have one admiring onlooker. But when you take a fool's audience away, in prison or out, he loses the stimulation of his vanity. When he leaves our discipline department he cannot swagger that he endured this thing or that, because every person knows that there is only one way to regain his place among his fellows, and that is by the promise to conform. No handcuffs have been used in the Ohio State Reformatory for seven years. Our correction cells, known in the institution as 'reflection chambers,' have been all-sufficient."

In the discussion which followed Mr. Leonard made the following additional remarks on the method of parole followed in his institution:

"The boys in our institution are eligible to parole after serving one year, but not before. When they are eligible, as laid down by law, they are presented by the superintendent and chaplain jointly to the Board of Managers for consideration. The Board of Managers has organized with a committee of six to meet from one to two days before the meeting and go over carefully the examination of the papers in each individual case. They make their findings separately and then bring them up and compare notes and get together. They then present their report added to that of the full board and the papers are gone over. Each boy is brought in and given a chance to make a personal plea. I believe that every boy has a right to make whatever impression he can on the board before they pass on his parole. After parole has been granted he cannot be released until there is a place of employment for him. We have regularly engaged, well-trained field workers who are also employment agents. If a boy cannot get employment we find it for him. They go out on parole for not less than a year, sometimes more. Occasionally we have a boy who asks for longer time for peculiar reasons,

but usually not. He makes monthly reports to the superintendent, and our field officers visit him once a month until the expiration of the year. The field officer makes a report to the Board of Managers; then he is discharged and the governor issues a certificate to that effect.”

EVENING SESSION

At the evening session Mrs. Maud Ballington Booth delivered one of her characteristic and inspiring addresses, after which the congress adjourned, to meet at Seattle in the fall of 1909.

Among the resolutions adopted were the following:

That the committee appointed to arrange for the International Prison Congress be given authority to add to its membership as it seems desirable, and

THAT WHEREAS, the Congress of the United States had extended through its President an invitation to the International Prison Congress, which was first organized under the initiative of this government in 1870, to hold its Eighth Congress at our national capital in 1910, and said invitation has been accepted;

Resolved, that we respectfully ask Congress to make a suitable appropriation for the preparatory work of the International Association and for the entertainment of the Congress, as asked for in the estimates of the State Department, and we pledge the cordial coöperation of the American Association in making the Washington session memorable.

That the Congress of the American Prison Association indorse the plan advocated by the National Child Labor Committee and other organizations for the protection of children, for the establishment of a children's bureau under one of the departments of the national government, for the investigation and publication of facts relating to child labor, including those relating to the correction and reformation of juvenile delinquents.

The following resolution was referred to the Board of Directors for action at the next congress:

In recognition of the high moral character of many life men in our penitentiaries, it is resolved that a committee be appointed who shall make suitable investigations and report next year upon the advisability of extending to this class of prisoners the benefits of parole.

The following are the Presidents for the year 1909: American Prison Association, Dr. J. T. Gilmour, Toronto; Wardens' Association, E. F. Morgan, Richmond; Chaplains' Association, the Rev. Aloys M. Fish, Trenton, N. J.; Physicians' Association, Dr. Daniel Phelan, Kingston, Canada.

Reported for THE JOURNAL,
J. F. OHL, *Official Delegate*.

JUDGE LINDSAY AND HIS COURT

I first met Judge Ben B. Lindsay in his home city of Denver, Colo., in 1906. A remark he then made impressed itself strongly on my mind, namely, that he owed his position as judge of the juvenile court to the women. In Pennsylvania such support could be only moral. In Colorado it was in this particular case both moral and political, inasmuch as in said State women have the right of suffrage. It is to the everlasting credit of the women of Denver that in a struggle involving a great moral issue they should have stood by the man who has made it his life work to save children from criminal careers, and whose defeat had been planned by hostile elements.

I again had the pleasure of meeting Judge Lindsay in the fall of 1908, on the occasion of a visit to his court. With my personal card, I sent in my membership card in the Acting Committee of The Pennsylvania Prison Society, and was promptly shown into the courtroom and given a seat near the judge. He wore no ermine, not even the judicial silk gown; nor was he seated behind the usual high desk of a judge. As I entered he was standing beside an ordinary table, and later sometimes rested against it. The boys and girls brought before him handed him the reports of their recent conduct. His manner toward all was the kindest, and his language was so plain and simple that none could fail to understand. He would receive a report card from the hand of a small boy, read it, and then comment on it. If the report was good, he would commend the boy and encourage him to persevere in his course; if not good, he would express his sorrow. "Now, Johnnie, what's the trouble? It makes me feel real bad to have such a report from you. Now don't you think you can do better if I give you another chance? I think you can. Just make an effort and I am sure your next report will be better. If not, we will have to try some other plan."

Presently the hearings began. Several groups of boys, who had in various ways given the street railway company considerable trouble, were brought before the judge. Standing between two of the young culprits, and perhaps laying a hand on the shoulder of each, he would first listen to the charges preferred by the officers, and then gather from the boys themselves all the

information he could regarding their school attendance, occupation, family life and surroundings. With this to guide him he would begin to talk to the boys in the most affectionate and fatherly manner, and endeavor to make them realize what might have been the consequences of their misdeeds to others, and how they would bring to themselves still greater trouble if they persisted in their present course of conduct. To those who showed a disposition to respond to this kind and tactful treatment every encouragement was extended, but perverse ones were given clearly to understand that they could expect no leniency from the court so long as they refused to mend their ways.

In the fall of 1908 Judge Lindsay was defeated for renomination by the powerful influence of certain corporations to which he had given offense. With these he joined issue as an independent candidate, and though it required thirty thousand "split" or "scratched" ballots he was triumphantly elected. The women of Denver had made it their cause, and before these even the corporations were impotent!

One of the most striking proofs of Judge Lindsay's profound moral influence over those coming under his authority is the fact that he has sent hundreds to the reformatory at Golden altogether unattended. The number who have been unfaithful to this trust and who failed to deliver themselves at the institution is so small as to be practically negligible.

Judge Lindsay is working at that end of human life at which results are most readily achieved. A vessel that has become misshapen can be remodeled so long as the clay is still plastic. Like a skillful potter Judge Lindsay seeks to mold human lives, and the success which has crowned his efforts has deservedly attracted the attention not only of his own countrymen, but of those in other lands who are interested in the child-saving problem.

GEORGE S. WETHERELL,
Member of the Acting Committee.

PREAMBLE

TO CONSTITUTION OF THE PHILADELPHIA SOCIETY FOR THE AMELIORATION OF THE MISERIES OF PUBLIC PRISONS.

Adopted May 15, 1787.

When we consider that the obligations of benevolence, which are founded on the precept and examples of the Author of Christianity, are not cancelled by the follies or crimes of our fellow creatures, and when we reflect upon the miseries which penury, hunger, cold, unnecessary severity, unwholesome apartments, and guilt (the usual attendants of prisons) involve with them, it becomes us to extend our compassion to that part of mankind who are the subjects of those miseries. By the aid of humanity their undue and illegal sufferings may be prevented; the link which should bind the whole family of mankind together, under all circumstances, be preserved unbroken; and such degree and modes of punishment may be discovered and suggested as may, instead of continuing habits of vice, become the means of restoring our fellow creatures to virtue and happiness. From a conviction of the truth and obligations of these principles, the subscribers have associated themselves under the title of “The Philadelphia Society for Alleviating the Miseries of Public Prisons.”

FORM OF BEQUEST OF PERSONAL PROPERTY

I give and bequeath to “THE PENNSYLVANIA PRISON SOCIETY” the sum of Dollars.

FORM OF DEVISE OF REAL ESTATE

I give and devise to “THE PENNSYLVANIA PRISON SOCIETY” all that certain piece or parcel of land. (Here describe the property.)

AN ACT TO INCORPORATE THE
Philadelphia Society for Alleviating the Miseries of Public Prisons.

SECTION I.—*Be it enacted by the Senate and House of Representatives of the Commonwealth of Pennsylvania, in General Assembly met, and it is hereby enacted by the authority of the same,* That all and every the persons who shall at the time of the passing of this Act be members of the Society called “The Philadelphia Society for Alleviating the Miseries of Public Prisons,” shall be and they are hereby created and declared to be one body, politic and corporate, by the name, style and title of “The Philadelphia Society for Alleviating the Miseries of Public Prisons,” and by the same name shall have perpetual succession, and shall be able to sue and be sued, implead and be impleaded in all courts of record or elsewhere, and to take and receive, hold and enjoy, by purchase, grant, devise, or bequest to them and their successors, lands, tenements, rents, annuities, franchises, hereditaments, goods and chattels of whatsoever nature, kind, or quality soever, real, personal, or mixed, or choses in action, and the same from time to time to sell grant, devise, alien, or dispose of; *provided* That the clear yearly value or income of the necessary houses, lands, tenements, rents, annuities, and other hereditaments, and real estate of the said corporation, and the interest of money by it lent, shall not exceed the sum of five thousand dollars; and also to make and have a common seal, and the same to break, alter, and renew at pleasure; and also to ordain, establish, and put in execution such by-laws, ordinances, and regulations as shall appear necessary and convenient for the government of the said corporation, not being contrary to this Charter or the Constitution and laws of the United States, or of this Commonwealth, and generally to do all and singular the matters and things which to them it shall lawfully appertain to do for the well-being of the said corporation, and the due management and ordering of the affairs thereof; and provided further, that the objects of the Society shall be confined to the alleviation of the miseries of public prisons, the improvement of prison discipline and relief of discharged prisoners.

SAM’L. ANDERSON, *Speaker of House.*
THOS. RINGLAND, *Speaker of Senate.*

Approved the 6th day of April, Anno Domini Eighteen Hundred and Thirty-three.

GEORGE WOLF.

LEGAL CHANGE OF NAME.

The Following Confirms the Action Relative to the Change of the Name of the Prison Society.

Decree:

And now, to wit, this 27th day of January, A. D. 1886, on motion of A. Sidney Biddle, Esq., the Petition and Application for change of name filed by "The Philadelphia Society for Alleviating the Miseries of Public Prisons," having been presented and considered, and it appearing that the order of court heretofore made as to advertisement has been duly complied with and due notice of said application to the Auditor-General of the State of Pennsylvania being shown, it is Ordered, Adjudged, and Decreed, that the name of the said Society shall hereafter be "THE PENNSYLVANIA PRISON SOCIETY," to all intents and purposes as if the same had been the original name of the said Society, and the same name shall be deemed and taken to be a part of the Charter of the said Society upon the recording of the said Application with its indorsements and this Decree in the Office of the Recorder of Deeds of this County, and upon filing with the Auditor-General a Copy of this Decree.

[Signed]

JOSEPH ALLISON.

Record:

Recorded in the office for the Recording of Deeds in and for the City and County of Philadelphia, on Charter Book No. 11, page 1064. Witness my hand and seal of Office this 28th day of June, A. D. 1886.

GEO. G. PIERIE, *Recorder of Deeds.*

Transcriber's Note:

Obvious printer errors corrected silently.

Inconsistent spelling and hyphenation are as in the original.

*** END OF THE PROJECT GUTENBERG EBOOK THE JOURNAL OF
PRISON DISCIPLINE AND PHILANTHROPY (NEW SERIES, NO. 47
AND 48, JANUARY 1909) ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.